EN BANC

[G.R. Nos. 146710-15. March 2, 2001.]

JOSEPH E. ESTRADA, *petitioner*, ***vs.*** **ANIANO DESIERTO, in his capacity as Ombudsman, RAMON GONZALES, VOLUNTEERS AGAINST CRIME AND CORRUPTION, GRAFT FREE PHILIPPINES FOUNDATION, INC., LEONARD DE VERA, DENNIS FUNA, ROMEO CAPULONG and ERNESTO B. FRANCISCO, JR.,** *respondents*.

[G.R. No. 146738. March 2, 2001.]

JOSEPH E. ESTRADA, *petitioner*, ***vs.*** **GLORIA MACAPACAL-ARROYO** , *respondent*.

D E C I S I O N

PUNO, *J* :

On the line in the cases at bar is the office of the President. Petitioner Joseph Ejercito Estrada alleges that he is the President on leave while respondent Gloria Macapagal-Arroyo claims she is the President. The warring personalities are important enough but more transcendental are the constitutional issues embedded on the parties' dispute. While the significant issues are many, the jugular issue involves the relationship between the ruler and the ruled in a democracy, Philippine style.

First, we take a view of the panorama of events that precipitated the crisis in the office of the President.

In the May 11, 1998 elections, petitioner Joseph Ejercito Estrada was elected President while respondent Gloria Macapagal-Arroyo was elected Vice- President. Some ten (10) million Filipinos voted for the petitioner believing he would rescue them from life's adversity. Both petitioner and the respondent were to serve a six-year term commencing on June 30, 1998.

From the beginning of his term, however, petitioner was plagued by a plethora of problems that slowly but surely eroded his popularity. His sharp descent from power started on October 4, 2000. Ilocos Sur Governor, Luis "Chavit" Singson, a longtime friend of the petitioner, went on air and accused the petitioner, his family and friends of receiving millions of pesos from *jueteng* lords. [1]

The exposé immediately ignited reactions of rage. The next day, October 5, 2000, Senator Teofisto Guingona, Jr., then the Senate Minority Leader, took the floor and delivered a fiery privilege speech entitled "I Accuse." He accused the petitioner of receiving some P220 million in *jueteng* money from Governor Singson from November 1998 to August 2000. He also charged that the petitioner took from Governor Singson 70 million on excise tax on cigarettes intended for Ilocos Sur. The privilege speech was referred by then Senate President Franklin Drilon, to the Blue Ribbon Committee (then headed by Senator Aquilino Pimentel) and the Committee on Justice (then headed by

Senator Renato Cayetano) for joint investigation. [2]

The House of Representatives did no less. The House Committee on Public Order and Security, then headed by Representative Roilo Golez, decided to investigate the exposé of Governor Singson. On the other hand, Representatives Heherson Alvarez, Ernesto Herrera and Michael Defensor spearheaded the move to impeach the petitioner.

Calls for the resignation of the petitioner filled the air. On October 11, Archbishop Jaime Cardinal Sin issued a pastoral statement in behalf of the Presbyteral Council of the Archdiocese of Manila, asking petitioner to step down from the presidency as he had lost the moral authority to govern. [3] Two days later or on October 13, the Catholic Bishops Conference of the Philippines joined the cry for the resignation of the petitioner. [4] Four days later, or on October 17, former President Corazon C. Aquino also demanded that the petitioner take the "supreme self-sacrifice" of resignation. [5] Former President Fidel Ramos also joined the chorus. Early on, or on October 12, respondent Arroyo resigned as Secretary of the Department of Social Welfare and Services [6] and later asked for petitioner's resignation. [7] However, petitioner strenuously held on to his office and refused to resign.

The heat was on. On November 1, four (4) senior economic advisers, members of the Council of Senior Economic Advisers, resigned. They were Jaime Augusto Zobel de Ayala, former Prime Minister Cesar Virata, former Senator Vicente Paterno and Washington Sycip. [8] On November 2, Secretary Mar Roxas II also resigned from the Department of Trade and Industry. [9] On November 3, Senate President Franklin Drilon, and House Speaker Manuel Villar, together with some 47 representatives defected from the ruling coalition, Lapian ng Masang Pilipino. [10]

The month of November ended with a big bang. In a tumultuous session on November 13, House Speaker Villar transmitted the Articles of Impeachment [11] signed by 115 representatives, or more than 1/3 of all the members of the House of Representatives to the Senate. This caused political convulsions in both houses of Congress. Senator Drilon was replaced by Senator Pimentel as Senate President. Speaker Villar was unseated by Representative Fuentebella. [12] On November 20, the Senate formally opened the impeachment trial of the petitioner. Twenty-one (21) senators took their oath as judges with Supreme Court Chief Justice Hilario G. Davide, Jr., presiding. [13]

The political temperature rose despite the cold December. On December 7, the impeachment trial started. [14] The battle royale was fought by some of the marquee names in the legal profession. Standing as prosecutors were then House Minority Floor Leader Feliciano Belmonte and Representatives Joker Arroyo, Wigberto Tañada, Sergio Apostol, Raul Gonzales, Oscar Moreno, Salacnib Baterina, Roan Libarios, Oscar Rodriguez, Clavel Martinez and Antonio Nachura. They were assisted by a battery of private prosecutors led by now Secretary of Justice Hernando Perez and now Solicitor General Simeon Marcelo. Serving as defense counsel were former Chief Justice Andres Narvasa, former Solicitor General and Secretary of Justice Estelito P. Mendoza, former City Fiscal of Manila Jose Flaminiano, former Deputy Speaker of the House Raul Daza, Atty. Siegfried Fortun and his brother, Atty. Raymund Fortun. The day to day trial was covered by live TV and during its course enjoyed the highest viewing rating. Its high and low points were the constant conversational piece of the chattering classes. The dramatic point of the December hearings was the testimony of Clarissa Ocampo, senior vice president of Equitable-PCI Bank. She testified that she was one foot away from petitioner Estrada when he affixed the signature "Jose Velarde" on

documents involving a P500 million investment agreement with their bank on February 4, 2000. [15]

After the testimony of Ocampo, the impeachment trial was adjourned in the spirit of Christmas. When it resumed on January 2, 2001, more bombshells were exploded by the prosecution. On January 11, Atty. Edgardo Espiritu who served as petitioner's Secretary of Finance took the witness stand. He alleged that the petitioner jointly owned BW Resources Corporation with Mr. Dante Tan who was facing charges of insider trading. [16] Then came the fateful day of January 16, when by a vote of 11-10 [17] the senator-judges ruled against the opening of the second envelope which allegedly contained evidence showing that petitioner held P3.3 billion in a secret bank account under the name "Jose Velarde." The public and private prosecutors walked out in protest of the ruling. In disgust, Senator Pimentel resigned as Senate President. [18] The ruling made at 10:00 p.m. was met by a spontaneous outburst of anger that hit the streets of the metropolis. By midnight, thousands had assembled at the EDSA Shrine and speeches full of sulphur were delivered against the petitioner and the eleven (11) senators.

On January 17, the public prosecutors submitted a letter to Speaker Fuentebella tendering their collective resignation. They also filed their Manifestation of Withdrawal of Appearance with the impeachment tribunal. [19] Senator Raul Roco quickly moved for the indefinite postponement of the impeachment proceedings until the House of Representatives shall have resolved the issue of resignation of the public prosecutors. Chief Justice Davide granted the motion. [20]

January 18 saw the high velocity intensification of the call for petitioner's resignation. A 10-kilometer line of people holding lighted candles formed a human chain from the Ninoy Aquino Monument on Ayala Avenue in Makati City to the EDSA Shrine to symbolize the people's solidarity in demanding petitioner's resignation. Students and teachers walked out of their classes in Metro Manila to show their concordance. Speakers in the continuing rallies at the EDSA Shrine, all masters of the physics of persuasion, attracted more and more people. [21]

On January 19, the fall from power of the petitioner appeared inevitable. At 1:20 p.m., the petitioner informed Executive Secretary Edgardo Angara that General Angelo Reyes, Chief of Staff of the Armed Forces of the Philippines, had defected. At 2:30 p.m., petitioner agreed to the holding of a snap election for President where he would not be a candidate. It did not diffuse the growing crisis. At 3:00 p.m., Secretary of National Defense Orlando Mercado and General Reyes, together with the chiefs of all the armed services went to the EDSA Shrine. [22] In the presence of former Presidents Aquino and Ramos and hundreds of thousands of cheering demonstrators, General Reyes declared that "on behalf of your Armed Forces, the 130,000 strong members of the Armed Forces, we wish to announce that we are withdrawing our support to this government." [23] A little later, PNP Chief, Director General Panfilo Lacson and the major service commanders gave a similar stunning announcement. [24] Some Cabinet secretaries, undersecretaries, assistant secretaries, and bureau chiefs quickly resigned from their posts. [25] Rallies for the resignation of the petitioner exploded in various parts of the country. To stem the tide of rage, petitioner announced he was ordering his lawyers to agree to the opening of the highly controversial second envelope. [26] There was no turning back the tide. The tide had become a tsunami.

January 20 turned to be the day of surrender. At 12:20 a.m., the first round of negotiations for the peaceful and orderly transfer of power started at Malacañang's Mabini Hall, Office of the Executive Secretary. Secretary Edgardo Angara, Senior

Deputy Executive Secretary Ramon Bagatsing, Political Adviser Angelito Banayo, Asst. Secretary Boying Remulla, and Atty. Macel Fernandez, head of the Presidential Management Staff, negotiated for the petitioner. Respondent Arroyo was represented by now Executive Secretary Renato de Villa, now Secretary of Finance Alberto Romulo and now Secretary of Justice Hernando Perez. [27] Outside the palace, there was a brief encounter at Mendiola between pro and anti-Estrada protesters which resulted in stone-throwing and caused minor injuries. The negotiations consumed all morning until the news broke out that Chief Justice Davide would administer the oath to respondent Arroyo at high noon at the EDSA Shrine.

At about 12:00 noon Chief Justice Davide administered the oath to respondent Arroyo as President of the Philippines. [28] At 2:30 p.m., petitioner and his family hurriedly left Malacañang Palace. [29] He issued the following press statement: [30]

"20 January 2001

STATEMENT FROM
PRESIDENT JOSEPH EJERCITO ESTRADA

At twelve o'clock noon today, Vice President Gloria Macapagal-Arroyo took her oath as President of the Republic of the Philippines. While along with many other legal minds of our country, I have strong and serious doubts about the legality and constitutionality of her proclamation as President, I do not wish to be a factor that will prevent the restoration of unity and order in our civil society.

It is for this reason that I now leave Malacañang Palace, the seat of the presidency of this country, for the sake of peace and in order to begin the healing process of our nation. I leave the Palace of our people with gratitude for the opportunities given to me for service to our people. I will not shirk from any future challenges that may come ahead in the same service of our country.

I call on all my supporters and followers to join me in the promotion of a constructive national spirit of reconciliation and solidarity.

May the Almighty bless our country and beloved people.

MABUHAY !

(Sgd.) JOSEPH EJERCITO ESTRADA"

It also appears that on the same day, January 20, 2001, he signed the following letter: [31]

"Sir:

By virtue of the provisions of Section 11, Article VII of the Constitution, I am hereby transmitting this declaration that I am unable to exercise the powers and duties of my office. By operation of law and the Constitution, the Vice-President shall be the Acting President.

(Sgd.) JOSEPH EJERCITO ESTRADA"

A copy of the letter was sent to former Speaker Fuentebella at 8:30 a.m. on January 20. [32] Another copy was transmitted to Senate President Pimentel on the same day although it was received only at 9:00 p.m. [33]

On January 22, the Monday after taking her oath, respondent Arroyo immediately discharged the powers and duties of the Presidency. On the same day, this Court

issued the following Resolution in Administrative Matter No. 01-1-05 SC, to wit:

> "A.M. No. 01-1-05-SC — In re: Request of Vice President Gloria Macapagal-Arroyo to Take her Oath of Office as President of the Republic of the Philippines before the Chief Justice — Acting on the urgent request of Vice President Gloria Macapagal-Arroyo to be sworn in as President of the Republic of the Philippines, addressed to the Chief Justice and confirmed by a letter to the Court, dated January 20, 2001, which request was treated as an administrative matter, the court Resolved unanimously to confirm the authority given by the twelve (12) members of the Court then present to the Chief Justice on January 20, 2001 to administer the oath of office to Vice President Gloria Macapagal-Arroyo as President of the Philippines, at noon of January 20, 2001.
>
> This resolution is without prejudice to the disposition of any justiciable case that may be filed by a proper party."

Respondent Arroyo appointed members of her Cabinet as well as ambassadors and special envoys. [34] Recognition of respondent Arroyo's government by foreign governments swiftly followed. On January 23, in a reception or *vin d' honneur* at Malacañang, led by the Dean of the Diplomatic Corps, Papal Nuncio Antonio Franco, more than a hundred foreign diplomats recognized the government of respondent Arroyo. [35] US President George W. Bush gave the respondent a telephone call from the White House conveying US recognition of her government. [36]

On January 24, Representative Feliciano Belmonte was elected new Speaker of the House of Representatives. [37] The House then passed Resolution No. 175 "expressing the full support of the House of Representatives to the administration of Her Excellency, Gloria Macapagal-Arroyo, President of the Philippines." [38] It also approved Resolution No. 176 "expressing the support of the House of Representatives to the assumption into office by Vice President Gloria Macapagal-Arroyo as President of the Republic of the Philippines, extending its congratulations and expressing its support for her administration as a partner in the attainment of the nation's goals under the Constitution." [39]

On January 26, the respondent signed into law the Solid Waste Management Act. [40] A few days later, she also signed into law the Political Advertising Ban and Fair Election Practices Act. [41]

On February 6, respondent Arroyo nominated Senator Teofisto Guingona, Jr., as her Vice President. [42] The next day, February 7, the Senate adopted Resolution No. 82 confirming the nomination of Senator Guingona, Jr. [43] Senators Miriam Defensor-Santiago, Juan Ponce Enrile, and John Osmeña voted "yes" with reservations, citing as reason therefor the pending challenge on the legitimacy of respondent Arroyo's presidency before the Supreme Court. Senators Teresa Aquino-Oreta and Robert Barbers were absent. [44] The House of Representatives also approved Senator Guingona's nomination in Resolution No. 178. [45] Senator Guingona, Jr. took his oath as Vice President two (2) days later. [46]

On February 7, the Senate passed Resolution No. 83 declaring that the impeachment court is *functus officio* and has been terminated. [47] Senator Miriam Defensor-Santiago stated "for the record" that she voted against the closure of the impeachment court on the grounds that the Senate had failed to decide on the impeachment case and that the resolution left open the question of whether Estrada was still qualified to run for another elective post. [48]

Meanwhile, in a survey conducted by Pulse Asia, President Arroyo's public acceptance rating jacked up from 16% on January 20, 2001 to 38% on January 26, 2001. [49] In another survey conducted by the ABS-CBN/SWS from February 2-7, 2001, results showed that 61% of the Filipinos nationwide accepted President Arroyo as replacement of petitioner Estrada. The survey also revealed that President Arroyo is accepted by 60% in Metro Manila, by also 60% in the balance of Luzon, by 71% in the Visayas, and 55% in Mindanao. Her trust rating increased to 52%. Her presidency is accepted by majorities in all social classes: 58% in the ABC or middle-to-upper classes, 64% in the D or mass class, and 54% among the E's or very poor class. [50]

After his fall from the pedestal of power, the petitioner's legal problems appeared in clusters. Several cases previously filed against him in the Office of the Ombudsman were set in motion. These are: (1) OMB Case No. 0-00-1629, filed by Ramon A. Gonzales on October 23, 2000 for bribery and graft and corruption; (2) OMB Case No. 0-00-1754 filed by the Volunteers Against Crime and Corruption on November 17, 2000 for plunder, forfeiture, graft and corruption, bribery, perjury, serious misconduct, violation of the Code of Conduct for Government Employees, etc.; (3) OMB Case No. 0-00-1755 filed by the Graft Free Philippines Foundation, Inc. on November 24, 2000 for plunder, forfeiture, graft and corruption, bribery, perjury, serious misconduct; (4) OMB Case No. 0-00-1756 filed by Romeo Capulong, et al., on November 28, 2000 for malversation of public funds, illegal use of public funds and property, plunder, etc.; (5) OMB Case No. 0-00-1757 filed by Leonard de Vera, et al., on November 28, 2000 for bribery, plunder, indirect bribery, violation of PD 1602, PD 1829, PD 46, and RA 7080; and (6) OMB Case No. 0-00-1758 filed by Ernesto B. Francisco, Jr. on December 4, 2000 for plunder, graft and corruption.

A special panel of investigators was forthwith created by the respondent Ombudsman to investigate the charges against the petitioner. It is chaired by Overall Deputy Ombudsman Margarito P. Gervasio with the following as members, *viz*: Director Andrew Amuyutan, Prosecutor Pelayo Apostol, Atty. Jose de Jesus and Atty. Emmanuel Laureso. On January 22, the panel issued an Order directing the petitioner to file his counter-affidavit and the affidavits of his witnesses as well as other supporting documents in answer to the aforementioned complaints against him.

Thus, the stage for the cases at bar was set. On February 5, petitioner filed with this Court GR No. 146710-15, a petition for prohibition with a prayer for a writ of preliminary injunction. It sought to enjoin the respondent Ombudsman from "conducting any further proceedings in Case Nos. OMB 0-00-1629, 1754, 1755,1756,1757 and 1758 or in any other criminal complaint that may be filed in his office, until after the term of petitioner as President is over and only if legally warranted." Thru another counsel, petitioner, on February 6, filed GR No. 146738 for Quo Warranto. He prayed for judgment "confirming petitioner to be the lawful and incumbent President of the Republic of the Philippines temporarily unable to discharge the duties of his office, and declaring respondent to have taken her oath as and to be holding the Office of the President, only in an acting capacity pursuant to the provisions of the Constitution." Acting on GR Nos. 146710-15, the Court, on the same day, February 6, required the respondents "to comment thereon within a non-extendible period expiring on 12 February 2001." On February 13, the Court ordered the consolidation of GR Nos. 146710-15 and GR No. 146738 and the filing of the respondents' comments "on or before 8:00 a.m. of February 15."

On February 15, the consolidated cases were orally argued in a four-hour hearing. Before the hearing, Chief Justice Davide, Jr. [51] and Associate Justice Artemio

Panganiban [52] recused themselves on motion of petitioner's counsel, former Senator Rene A. Saguisag. They debunked the charge of counsel Saguisag that they have "compromised themselves by indicating that they have thrown their weight on one side" but nonetheless inhibited themselves. Thereafter, the parties were given the short period of five (5) days to file their memoranda and two (2) days to submit their simultaneous replies.

In a resolution dated February 20, acting on the urgent motion for copies of resolution and press statement for "Gag Order" on respondent Ombudsman filed by counsel for petitioner in G.R. No. 146738, the Court resolved:

> "(1) to inform the parties that the Court did not issue a resolution on January 20, 2001 declaring the office of the President vacant and that neither did the Chief Justice issue a press statement justifying the alleged resolution;
>
> (2) to order the parties and especially their counsel who are officers of the Court under pain of being cited for contempt to refrain from making any comment or discussing in public the merits of the cases at bar while they are still pending decision by the Court, and
>
> (3) to issue a 30-day status quo order effective immediately enjoining the respondent Ombudsman from resolving or deciding the criminal cases pending investigation in his office against petitioner Joseph E. Estrada and subject of the cases at bar, it appearing from news reports that the respondent Ombudsman may immediately resolve the cases against petitioner Joseph E. Estrada seven (7) days after the hearing held on February 15, 2001, which action will make the cases at bar moot and academic." [53]

The parties filed their replies on February 24. On this date, the cases at bar were deemed submitted for decision.

The bedrock issues for resolution of this Court are:

I

Whether the petitions present a justiciable controversy.

II

Assuming that the petitions present a justiciable controversy, whether petitioner Estrada is a President on leave while respondent Arroyo is an Acting President.

III

Whether conviction in the impeachment proceedings is a condition precedent for the criminal prosecution of petitioner Estrada. In the negative and on the assumption that petitioner is still President, whether he is immune from criminal prosecution.

IV

Whether the prosecution of petitioner Estrada should be enjoined on the ground of prejudicial publicity.

We shall discuss the issues *in seriatim*.

I

Whether or not the cases
at bar involve a political question

Private respondents [54] raise the threshold issue that the cases at bar pose a political question, and hence, are beyond the jurisdiction of this Court to decide. They contend that shorn of its embroideries, the cases at bar assail the "legitimacy of the Arroyo administration." They stress that respondent Arroyo ascended the presidency through people power; that she has already taken her oath as the 14th President of the Republic; that she has exercised the powers of the presidency and that she has been recognized by foreign governments. They submit that these realities on ground constitute the political thicket which the Court cannot enter.

We reject private respondents' submission. To be sure, courts here and abroad, have tried to lift the shroud on political question but its exact latitude still splits the best of legal minds. Developed by the courts in the 20th century, the political question doctrine which rests on the principle of separation of powers and on prudential considerations, continue to be refined in the mills of constitutional law. [55] In the United States, the most authoritative guidelines to determine whether a question is political were spelled out by Mr. Justice Brennan in the 1962 case of *Baker v. Carr*, [56] viz:

> ". . . Prominent on the surface of any case held to involve a political question is found a textually demonstrable constitutional commitment of the issue to a coordinate political department or a lack of judicially discoverable and manageable standards for resolving it, or the impossibility of deciding without an initial policy determination of a kind clearly for non-judicial discretion; or the impossibility of a court's undertaking independent resolution without expressing lack of the respect due coordinate branches of government; or an unusual need for unquestioning adherence to a political decision already made; or the potentiality of embarrassment from multifarious pronouncements by various departments on question. Unless one of these formulations is inextricable from the case at bar, there should be no dismissal for non justiciability on the ground of a political question's presence. The doctrine of which we treat is one of political questions', not of 'political cases'."

In the Philippine setting, this Court has been continuously confronted with cases calling for a firmer delineation of the inner and outer perimeters of a political question. [57] Our leading case is *Tañada v. Cuenco* , [58] where this Court, through former Chief Justice Roberto Concepcion, held that political questions refer "to those questions which, under the Constitution, are to be *decided by the people* in their sovereign capacity, or in regard to which *full discretionary authority* has been delegated to the legislative or executive branch of the government. It is concerned with issues dependent upon the *wisdom*, not *legality* of a particular measure." To a great degree, the 1987 Constitution has narrowed the reach of the political question doctrine when it expanded the power of judicial review of this court not only to settle actual controversies involving rights which are legally demandable and enforceable *but also to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of government*. [59] Heretofore, the judiciary has focused on the "thou shalt not's" of the Constitution directed against the exercise of its jurisdiction. [60] With the new provision, however, courts are given a greater prerogative to determine what it can do to prevent grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of government. *Clearly, the new provision did not just grant the Court power of doing*

nothing. In sync and symmetry with this intent are other provisions of the 1987 Constitution trimming the so called political thicket. Prominent of these provisions is section 18 of Article VII which empowers this Court in limpid language to ". . . review, in an appropriate proceeding filed by any citizen, the sufficiency of the factual basis of the proclamation of martial law or the suspension of the privilege of the writ (of habeas corpus) or the extension thereof . . .."

Respondents rely on the case of *Lawyers League for a Better Philippines and/or Oliver A. Lozano v. President Corazon C. Aquino, et al*. [61] and related cases [62] to support their thesis that since the cases at bar involve the *legitimacy of the government of respondent Arroyo*, ergo, they present a political question. A more cerebral reading of the cited cases will show that they are inapplicable. In the cited cases, we held that the government of former President Aquino was the result of a *successful revolution* by the sovereign people, albeit a peaceful one. No less than the *Freedom Constitution* [63] declared that the Aquino government was installed through a direct exercise of the power of the Filipino people "*in defiance of the provisions of the 1973 Constitution, as amended*." It is familiar learning that the legitimacy of a government sired by a successful revolution by people power is beyond judicial scrutiny for that government automatically orbits out of the constitutional loop. In checkered contrast, *the government of respondent Arroyo is not revolutionary in character*. The oath that she took at the EDSA Shrine is the oath under the 1987 Constitution. [64] *In her oath, she categorically swore to preserve and defend the 1987 Constitution*. Indeed, she has stressed that she is discharging the powers of the presidency under the authority of the 1987 Constitution.

In fine, the *legal distinction* between EDSA People Power I and EDSA People Power II is clear. *EDSA I* involves the exercise of the *people power of revolution* which *overthrew the whole government*. *EDSA II* is an exercise of *people power of freedom of speech and freedom of assembly to petition the government for redress of grievances which only affected the office of the President*. *EDSA I is extra constitutional* and the legitimacy of the new government that resulted from it cannot be the subject of judicial review, but *EDSA II is intra constitutional* and the resignation of the sitting President that it caused and the succession of the Vice President as President are subject to judicial review. *EDSA I presented a political question*; *EDSA II involves legal questions*. A brief discourse on freedom of speech and of the freedom of assembly to petition the government for redress of grievance which are the *cutting edge of EDSA People Power II* is not inappropriate.

Freedom of speech and the right of assembly are treasured by Filipinos. Denial of these rights was one of the reasons of our 1898 revolution against Spain. Our national hero, Jose P. Rizal, raised the clarion call for the recognition of freedom of the press of the Filipinos and included it as among "the reforms *sine quibus non*." [65] The *Malolos Constitution*, which is the work of the revolutionary Congress in 1898, provided in its Bill of Rights that Filipinos shall not be deprived (1) of the right to freely express his ideas or opinions, orally or in writing, through the use of the press or other similar means; (2) of the right of association for purposes of human life and which are not contrary to public means; and (3) of the right to send petitions to the authorities, individually or collectively." *These fundamental rights were preserved when the United States acquired jurisdiction over the Philippines*. In the Instruction to the Second Philippine

Commission of April 7, 1900 issued by President McKinley, it is specifically provided "that no law shall be passed abridging the freedom of speech or of the press or of the rights of the people to peaceably assemble and petition the Government for redress of grievances." The guaranty was carried over in the Philippine Bill, the Act of Congress of July 1, 1902 and the Jones Law, the Act of Congress of August 29, 1966. [66]

Thence on, the guaranty was set in stone in our *1935 Constitution*, [67] and the *1973 Constitution*. [68] These rights are now safely ensconced in section 4, Article III of the 1987 Constitution, viz:

> "SECTION 4. No law shall be passed abridging the freedom of speech, of expression, or of the press, or the right of the people peaceably to assemble and petition the government for redress of grievances."

The indispensability of the people's freedom of speech and of assembly to democracy is now self-evident. The reasons are well put by Emerson: first, freedom of expression is essential as a means of assuring individual fulfillment; second, it is an essential process for advancing knowledge and discovering truth; third, it is essential to provide for participation in decision-making by all members of society; and fourth, it is a method of achieving a more adaptable and hence, a more stable community of maintaining the precarious balance between healthy cleavage and necessary consensus." [69] *In this sense, freedom of speech and of assembly provides a framework in which the "conflict necessary to the progress of a society can take place without destroying the society*." [70] In *Hague v. Committee for Industrial Organization*, [71] this function of free speech and assembly was echoed in the *amicus curiae* brief filed by the Bill of Rights Committee of the American Bar Association which emphasized that "the basis of the right of assembly is the substitution of the expression of opinion and belief by *talk rather than force*; and this means *talk for all and by all*." [72] In the relatively recent case of *Subayco v. Sandiganbayan*, [73] this Court similarly stressed that " . . . it should be clear even to those with intellectual deficits that when the sovereign people assemble to petition for redress of grievances, all should listen. *For in a democracy, it is the people who count; those who are deaf to their grievances are ciphers*."

Needless to state, the cases at bar pose legal and not political questions. The principal issues for resolution require the proper interpretation of certain provisions in the 1987 Constitution, notably section 1 of Article II, [74] and section 8 [75] of Article VII, and the allocation of governmental powers under section 11 [76] of Article VII. The issues likewise call for a ruling on the scope of presidential immunity from suit. They also involve the correct calibration of the right of petitioner against prejudicial publicity. As early as the 1803 case of *Marbury v. Madison*, [77] the doctrine has been laid down that "*it is emphatically the province and duty of the judicial department to say what the law is* . . ." Thus, respondent's invocation of the doctrine of political question is but a foray in the dark.

II

Whether or not the petitioner resigned as President

We now slide to the second issue. None of the parties considered this issue as posing a political question. Indeed, it involves a legal question whose factual ingredient is determinable from the records of the case and by resort to judicial notice. Petitioner

denies he resigned as President or that he suffers from a permanent disability. Hence, he submits that the office of the President was not vacant when respondent Arroyo took her oath as President.

The issue brings under the microscope the meaning of section 8, Article VII of the Constitution which provides:

> "SECTION 8. In case of death, permanent disability, removal from office or resignation of the President, the Vice President shall become the President to serve the unexpired term. In case of death, permanent disability, removal from office, or resignation of both the President and Vice President, the President of the Senate or, in case of his inability, the Speaker of the House of Representatives, shall then act as President until the President or Vice President shall have been elected and qualified.
>
> xxx xxx xxx."

The issue then is whether the petitioner resigned as President or should be considered resigned as of January 20, 2001 when respondent took her oath as the 14th President of the Republic. Resignation is not a high level legal abstraction. It is a factual question and its *elements* are beyond quibble: *there must be an intent to resign and the intent must be coupled by acts of relinquishment*. [78] The validity of a resignation is not governed by any formal requirement as to form. It can be oral. It can be written. It can be express. It can be implied. As long as the resignation is clear, it must be given legal effect.

In the cases at bar, the facts show that petitioner did not write any formal letter of resignation before he evacuated Malacañang Palace in the afternoon of January 20, 2001 after the oath-taking of respondent Arroyo. Consequently, whether or not petitioner resigned has to be determined from his acts and omissions before, during and after January 20, 2001 or by the *totality of prior, contemporaneous and posterior facts and circumstantial evidence bearing a material relevance on the issue*.

Using this totality test, *we hold that petitioner resigned as President*.

To appreciate the public pressure that led to the resignation of the petitioner, it is important to follow the succession of events after the exposé of Governor Singson. The Senate Blue Ribbon Committee investigated. The more detailed revelations of petitioner's alleged misgovernance in the Blue Ribbon investigation spiked the hate against him. The Articles of Impeachment filed in the House of Representatives which initially was given a near cipher chance of succeeding snowballed. In express speed, it gained the signatures of 115 representatives or more than 1/3 of the House of Representatives. Soon, petitioner's powerful political allies began deserting him. Respondent Arroyo quit as Secretary of Social Welfare. Senate President Drilon and former Speaker Villar defected with 47 representatives in tow. Then, his respected senior economic advisers resigned together with his Secretary of Trade and Industry.

As the political isolation of the petitioner worsened, the people's call for his resignation intensified. The call reached a new crescendo when the eleven (11) members of the impeachment tribunal refused to open the second envelope. It sent the people to paroxysms of outrage. Before the night of January 16 was over, the EDSA Shrine was swarming with people crying for redress of their grievance. Their number grew exponentially. Rallies and demonstration quickly spread to the countryside like a brush fire.

As events approached January 20, we can have an authoritative window on the *state of mind* of the petitioner. The window is provided in the "Final Days of Joseph Ejercito Estrada," the diary of Executive Secretary Angara serialized in the Philippine Daily Inquirer. [79] The Angara Diary reveals that in the morning of January 19, petitioner's loyal advisers were worried about the swelling of the crowd at EDSA, hence, they decided to create an ad hoc committee to handle it. Their worry would worsen. At 1:20 p.m., petitioner pulled Secretary Angara into his small office at the presidential residence and exclaimed: "Ed, seryoso na ito. Kumalas na si Angelo (Reyes) (Ed, this is serious. Angelo has defected.)" [80] An hour later or at 2:30 p.m., the petitioner decided to call for a snap presidential election *and stressed he would not be a candidate*. *The proposal for a snap election for president in May where he would not be a candidate is an indicium that petitioner had intended to give up the presidency even at that time*. At 3:00 p.m., General Reyes joined the sea of EDSA demonstrators demanding the resignation of the petitioner and dramatically announced the AFP's withdrawal of support from the petitioner and their pledge of support to respondent Arroyo. The seismic shift of support left petitioner weak as a president. According to Secretary Angara, he asked Senator Pimentel to advise petitioner to consider the option of "*dignified exit or resignation*." [81] *Petitioner did not disagree but listened intently* . [82] The sky was falling fast on the petitioner. At 9:30 p.m., Senator Pimentel repeated to the petitioner the urgency of making a graceful and dignified exit. He gave the proposal a sweetener by saying that petitioner would be allowed to go abroad with enough funds to support him and his family. [83] *Significantly*, *the petitioner expressed no objection to the suggestion for a graceful and dignified exit but said he would never leave the country*. [84] At 10:00 p.m., petitioner revealed to Secretary Angara, "Ed, Angie (Reyes) guaranteed that I would have five days to a week in the palace." [85] *This is proof that petitioner had reconciled himself to the reality that he had to resign. His mind was already concerned with the five-day grace period he could stay in the palace. It was a matter of time*.

The pressure continued piling up. By 11:00 p.m., former President Ramos called up Secretary Angara and requested, "Ed, magtulungan tayo para magkaroon tayo ng (let's cooperate to ensure a) *peaceful and orderly transfer of power*." [86] There was no defiance to the request. Secretary Angara readily agreed. Again, we note that at this stage, *the problem was already about a peaceful and orderly transfer of power. The resignation of the petitioner was implied*.

The *first negotiation* for a peaceful and orderly transfer of power immediately started at 12:20 a.m. of January 20, that fateful Saturday. The *negotiation was limited* to three (3) points: (1) the transition period of five days after the petitioner's resignation; (2) the guarantee of the safety of the petitioner and his family, and (3) the agreement to open the second envelope to vindicate the name of the petitioner. [87] *Again, we note that the resignation of petitioner was not a disputed point. The petitioner cannot feign ignorance of this fact*. According to Secretary Angara, at 2:30 a.m., he briefed the petitioner on the three points and the following entry in the *Angara Diary shows the reaction of the petitioner*, viz:

"xxx xxx xxx

> I explain what happened .during the first round of negotiations. The *President* immediately stresses that he just wants the five-day period promised by Reyes, as well as to open the second envelope to clear his name.

If the envelope is opened, on Monday, he says, he will leave by Monday

The President says. "*Pagod na pagod na ako. Ayoko na masyado nang masakit. Pagod na ako sa red tape, bureaucracy, intriga. (I am very tired. I don't want any more of this — it's too painful. I'm tired of the red tape, the bureaucracy, the intrigue.*)

I just want to clear my name, then I will go" [88]

Again, this is high grade evidence that the petitioner has resigned. The intent to resign is clear when he said ". . . *Ayoko na* masyado nang masakit." "Ayoko na" are words of resignation.

The *second round of negotiation* resumed at 7:30 a.m. According to the Angara Diary, the following happened:

"*Opposition's deal*

7:30 a.m. — Rene arrives with Bert Romulo and (Ms. Macapagal's spokesperson) Rene Corona. For this round, I am accompanied by Dondon Bagatsing and Macel.

Rene pulls out a document titled "Negotiating Points." It reads:

'1. The President shall sign a resignation document within the day, 20 January 2001, that will be effective on Wednesday, 24 January 2001, on which day the Vice President will assume the Presidency of the Republic of the Philippines.

2. Beginning today, 20 January 2001, the transition process for the assumption of the new administration shall commence, and persons designated by the Vice President to various positions and offices of the government shall start their orientation activities in coordination with the incumbent officials concerned.

3. The Armed Forces of the Philippines and the Philippine National Police shall function under the Vice President as national military and police authority effective immediately.

4. The Armed Forces of the Philippines, through its Chief of Staff, shall guarantee the security of the President and his family as approved by the national military and police authority (Vice President).

5. It is to be noted that the Senate will open the second envelope in connection with the alleged savings account of the President in the Equitable PCI Bank in accordance with the rules of the Senate, pursuant to the request to the Senate President.'

Our deal

We bring out, too, our discussion draft which reads:

The undersigned parties, for and in behalf of their respective principals, agree and undertake as follows:

'1. A transition will occur and take place on Wednesday, 24 January 2001, at which time President Joseph Ejercito Estrada will turn over the

presidency to Vice President Gloria Macapagal-Arroyo.

2. In return, President Estrada and his families are guaranteed security and safety of their person and property throughout their natural lifetimes. Likewise, President Estrada and his families are guaranteed freedom from persecution or retaliation from government and the private sector throughout their natural lifetimes.

This commitment shall be guaranteed by the Armed Forces of the Philippines ('AFP') through the Chief of Staff, as approved by the national military and police authorities — Vice President (Macapagal).

3. Both parties shall endeavor to ensure that the Senate sitting as an impeachment court will authorize the opening of the second envelope in the impeachment trial as proof that the subject savings account does not belong to President Estrada.

4. During the five-day transition period between 20 January 2001 and 24 January 2001 (the "Transition Period"), the incoming Cabinet members shall receive an appropriate briefing from the outgoing Cabinet officials as part of the orientation program.

During the Transition Period, the AFP and the Philippine National Police ('PNP') shall function under Vice President (Macapagal) as national military and police authorities.

Both parties hereto agree that the AFP chief of staff and PNP director general shall obtain all the necessary signatures as affixed to this agreement and insure faithful implementation and observance thereof.

Vice President Gloria Macapagal-Arroyo shall issue a public statement in the form and tenor provided for in 'Annex A' heretofore attached to this agreement.'" [89]

The second round of negotiation cements the reading that the petitioner has resigned. It will be noted that during this second round of negotiation, the resignation of the petitioner was again treated as a given fact. The only unsettled points at that time were the measures to be undertaken by the parties during and after the transition period.

According to Secretary Angara, the *draft agreement* which was premised on the resignation of the petitioner was further *refined*. *It was then signed by their side* and he was ready to fax it to General Reyes and Senator Pimentel to await the signature of the United Opposition. *However*, *the signing by the party of the respondent Arroyo was aborted by her oath-taking*. The Angara Diary narrates the fateful events, *viz*: [90]

"xxx xxx xxx

11:00 a.m. — Between General Reyes and myself, there is a firm agreement on the five points to effect a peaceful transition. I can hear the general clearing all these points with a group he is with. I hear voices in the background

Agreement

The agreement starts: 1. The President-shall resign today, *20 January*

2001, which resignation shall be effective on 24 January 2001, on which day the Vice President will assume the presidency of the Republic of the Philippines.

xxx xxx xxx

The rest of the agreement follows:

2. The transition process for the assumption of the new administration shall commence on 20 January 2001, wherein persons designated by the Vice President to various government positions shall start orientation activities with incumbent officials.

3. The Armed Forces of the Philippines through its Chief of Staff, shall guarantee the safety and security of the President and his families throughout their natural lifetimes as approved by the national military and police authority — Vice President.

4. The AFP and the Philippine National Police ('PNP') shall function under the Vice President as national military and police authorities.

5. Both parties request the impeachment court to open the second envelope in the impeachment trial, the contents of which shall be offered as proof that the subject savings account does not belong to the President.

The Vice President shall issue a public statement in the form and tenor provided for in Annex 'B' heretofore attached to this agreement.

xxx xxx xxx

11:20 a.m. — I am all set to fax General Reyes and Nene Pimentel our agreement, signed by our side and awaiting the signature of the United Opposition.

And then it happens. General Reyes calls me to say that the Supreme Court has decided that Gloria Macapagal-Arroyo is President and will be sworn in at 12 noon.

'Bakit hindi naman kayo nakahintay? Paano na ang agreement (Why couldn't you wait? What about the agreement)?' I asked.

Reyes answered: 'Wala na, sir (It's over, sir).'

I ask him: 'Diyung transition period, moot and academic na?'

And General Reyes answers: 'Oo nga, i-delete na natin, sir (Yes, we're deleting that part).'

Contrary to subsequent reports, I do not react and say that there was a double cross.

But I immediately instruct Macel to *delete the first provision on resignation since this matter is already moot and academic*. Within moments, Macel erases the first provision and faxes the documents, which have been signed by myself, Dondon and Macel, to Nene Pimentel and General Reyes.

I direct Demaree Ravel to rush the original document to General Reyes for the signatures of the other side, *as it is important that the provisions on security, at least, should be respected*.

I then advise the President that the Supreme Court has ruled that Chief Justice Davide will administer the oath to Gloria at 12 noon.

The President is too stunned for words.

Final meal

12 noon — Gloria takes her oath as President of the Republic of the Philippines.

12:20 p.m. — The PSG distributes firearms to some people inside the compound.

The President is having his final meal at the Presidential Residence with the few friends and Cabinet members who have gathered.

By this time, demonstrators have already broken down the first line of defense at Mendiola. Only the PSG is there to protect the Palace, since the police and military have already withdrawn their support for the President.

1 p.m. — The President's personal staff is rushing to pack as many of the Estrada family's personal possessions as they can.

During lunch, Ronnie Puno mentions that the President needs to release a *final statement before leaving Malacañang*.

The statement reads: At twelve o'clock noon today, Vice President Gloria Macapagal-Arroyo took her oath as President of the Republic of the Philippines. While along with many other legal minds of our country, I have strong and serious doubts about the legality and constitutionality of her proclamation as President, I do not wish to be a factor that will prevent the restoration of unity and order in our civil society.

It is for this reason that I now leave Malacañang Palace, the seat of the presidency of this county, for the sake of peace and in order to begin the healing process of our nation. I leave the Palace of our people with gratitude for the opportunities given to me for service to our people. I will not shirk from any future challenges that may come ahead in the same service of our country.

I call on all my supporters and followers to join me in the promotion of a constructive national spirit of reconciliation and solidarity.

May the Almighty bless our country and our beloved people. MABUHAY!"'

It was curtain time for the petitioner.

In sum, we hold that the resignation of the petitioner cannot be doubted. It was confirmed by his leaving Malacañang. In the press release containing his final statement, (1) he *acknowledged the oath-taking of the respondent as President* of the Republic albeit with reservation about its legality; (2) he emphasized he was leaving the Palace, the seat of the presidency, for the sake of peace and in order to begin the healing process of our nation. *He did not say he was leaving the Palace due to any kind of inability and that he was going to re-assume the presidency as soon as the disability disappears*; (3) he expressed his gratitude to the people for the opportunity to serve them. Without doubt, he was referring to the *past opportunity* given him to serve the people as President; (4) he assured that he will not shirk from any *future challenge* that

may come ahead in the same service of our country. Petitioner's reference is to a *future challenge after occupying the office of the president* which he has given up, and (5) he called on this supporters to join him in the promotion of a constructive national spirit of reconciliation and solidarity. *Certainly, the national spirit of reconciliation and solidarity could not be attained if he did not give up the presidency*. The press release was petitioner's valedictory, his final act of farewell. *His presidency is now in the past tense*.

It is, however, urged that the petitioner did not resign but only took a temporary leave of absence due to his inability to govern. In support of this thesis, the letter dated January 20, 2001 of the petitioner sent to Senate President Pimentel and Speaker Fuentebella is cited. Again, we refer to the said letter, *viz*:

> "Sir.
>
> By virtue of the provisions of Section II, Article VII of the Constitution, I am hereby transmitting this declaration that I am unable to exercise the powers and duties of my office. By operation of law and the Constitution, the Vice President shall be the Acting President.
>
> (Sgd.) Joseph Ejercito Estrada"

To say the least, the above *letter is wrapped in mystery*. [91] The pleadings filed by the petitioner in the cases at bar did not discuss, nay even intimate, the circumstances that led to its preparation. Neither did the counsel of the petitioner reveal to the Court these circumstances during the oral argument. *It strikes the Court as strange that the letter, despite its legal value, was never referred to by the petitioner during the week-long crisis*. To be sure, there was not the slightest hint of its existence when he issued his final press release. It was all too easy for him to tell the Filipino people in his press release that he was temporarily unable to govern and that he was leaving the reins of government to respondent Arroyo for the time being. *Under any circumstance, however, the mysterious letter cannot negate the resignation of the petitioner*. If it was prepared *before* the press release of the petitioner clearly showing his resignation from the presidency, then the resignation must prevail as a later act. If, however, it was prepared *after* the press release, still, it commands scant legal significance. *Petitioner's resignation from the presidency cannot be the subject of a changing caprice nor of a whimsical will especially if the resignation is the result of his repudiation by the people*. There is another reason why this Court cannot give any legal significance to petitioner's letter and this shall be discussed in issue number III of this Decision.

After petitioner contended that as a matter of fact he did not resign, *he also argues that he could not resign as a matter of law*. He relies on section 12 of RA No. 3019, otherwise known as the Anti-Graft and Corrupt Practices Act, which allegedly prohibits his resignation, *viz*:

> "SECTION 12. No public officer shall be allowed to resign retire pending an investigation, criminal or administrative, pending a prosecution against him, for any offense under this Act under the provisions of the Revised Penal Code on bribery."

A reading of the *legislative history of RA No. 3019* will hardly provide any comfort to the petitioner. RA No. 3019 originated from Senate Bill No. 293. The original draft of

the bill, when it was submitted to the Senate, did not contain a provision similar to section 12 of the law as it now stands. However, in his sponsorship speech, Senator Arturo Tolentino, the author of the bill, "reserved to propose during the period of amendments the inclusion of a provision to the effect that no public official who is under prosecution for any act of graft or corruption, or is under administrative investigation, shall be allowed to voluntarily resign or retire." [92] During the period of amendments, the following provision was inserted as section 15:

> "SECTION 15. *Termination of office* — No public official shall be allowed to resign or retire pending an investigation, criminal or administrative, or pending a prosecution against him, for any offense under the Act or under the provisions of the Revised Penal Code on bribery.
>
> The separation or cessation of a public official from office shall not be a bar to his prosecution under this Act for an offense committed during his incumbency." [93]

The bill was vetoed by then President Carlos P. Garcia who questioned the legality of the second paragraph of the provision and insisted that the President's immunity should extend even after his tenure.

Senate Bill No. 571, which was substantially similar to Senate Bill No. 293, was thereafter passed. Section 15 above became section 13 under the new bill, but the deliberations on this particular provision mainly focused on the immunity of the President which was one of the reasons for the veto of the original bill. There was hardly any debate on the prohibition against the resignation or retirement of a public official with pending criminal and administrative cases against him. Be that as it may, the *intent of the law* ought to be obvious. *It is to prevent the act of resignation or retirement from being used by a public official as a protective shield to stop the investigation of a pending criminal or administrative case against him and to prevent his prosecution under the Anti-Graft Law or prosecution for bribery under the Revised Penal Code*. To be sure, no person can be compelled to render service for that would be a violation of his constitutional right. [94] A public official has the right not to serve if he really wants to retire or resign. Nevertheless, if at the time he resigns or retires, a public official is facing administrative or criminal investigation or prosecution, such resignation or retirement will not cause the dismissal of the criminal or administrative proceedings against him. He cannot use his resignation or retirement to avoid prosecution.

There is another reason why petitioner's contention should be rejected. In the cases at bar, the records show that when petitioner resigned on January 20, 2001, the cases filed against him before the Ombudsman were OMB Case Nos. 0-00-1629, 0-00-1755, 0-00-1756, 0-00-1757 and 0-00-1758. While these cases have been filed, the respondent Ombudsman refrained from conducting the preliminary investigation of the petitioner for the reason that as the sitting President then, petitioner was immune from suit. Technically, the said cases cannot be considered as pending for the Ombudsman lacked jurisdiction to act on them. Section 12 of RA No. 3019 cannot therefore be invoked by the petitioner for it contemplates of cases whose investigation or prosecution do not suffer from any insuperable legal obstacle like the immunity from suit of a sitting President.

Petitioner contends that the impeachment proceeding is an administrative investigation that, under section 12 of RA 3019, bars him from resigning. We hold otherwise. The exact nature of an impeachment proceeding is debatable. But even

assuming *arguendo* that it is an administrative proceeding, it can not be considered pending at the time petitioner resigned because the process already broke down when a majority of the senator-judges voted against the opening of the second envelope, the public and private prosecutors walked out, the public prosecutors filed their Manifestation of Withdrawal of Appearance, and the proceedings were postponed indefinitely. There was, in effect, no impeachment case pending against petitioner when he resigned.

III

Whether or not the petitioner is only temporarily unable to act as President.

We shall now tackle the contention of the petitioner that he is merely temporarily unable to perform the powers and duties of the presidency, and hence is a President on leave. As aforestated, the inability claim is contained in the January 20, 2001 letter of petitioner sent on the same day to Senate President Pimentel and Speaker Fuentebella.

Petitioner postulates that respondent Arroyo as Vice President has no power to adjudge the inability of the petitioner to discharge the powers and duties of the presidency. His significant submittal is that "*Congress* has the ultimate authority under the Constitution to determine whether the President is incapable of performing his functions in the manner provided for in section 11 of Article VII." [95] This contention is the *centerpiece of petitioner's stance* that he is a *President on leave* and respondent *Arroyo is only an Acting President*.

An examination of section 11, Article VII is in order . It provides:

> "SECTION 11. Whenever the President transmits to the President of the Senate and the Speaker of the House of Representatives his written declaration that he is unable to discharge the powers and duties of his office, and until he transmits to them a written declaration to the contrary, such powers and duties shall be discharged by the Vice-President as Acting President.
>
> Whenever a majority of all the Members of the Cabinet transmit to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Vice-President shall immediately assume the powers and duties of the office as Acting President.
>
> Thereafter, when the President transmits to the President of the Senate and to the Speaker of the House of Representatives his written declaration that no inability exists, he shall reassume the powers and duties of his office. Meanwhile, should a majority of all the Members of the Cabinet transmit within five days to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Congress shall decide the issue. For that purpose, the Congress shall convene, if it is not in session, within forty-eight hours, in accordance with its rules and without need of call.
>
> If the Congress, within ten days after receipt of the last written declaration, or, if not in session, within twelve days after it is required to assemble,

determines by a two-thirds vote of both Houses, voting separately, that the President is unable to discharge the powers and duties of his office, the Vice-President shall act as President; otherwise, the President shall continue exercising the powers and duties of his office."

That is the law. *Now*, *the operative facts*:

(1) Petitioner, on January 20, 2001, sent the above letter claiming inability to the Senate President and Speaker of the House;

(2) Unaware of the letter, respondent Arroyo took her oath of office as President on January 20, 2001 at about 12:30 p.m.;

(3) *Despite receipt of the letter*, the House of Representatives passed on January 24, 2001 *House Resolution No. 175*; [96]

On the same date, the House of the Representatives passed *House Resolution No. 176* [97] which states:

"RESOLUTION EXPRESSING THE SUPPORT OF THE HOUSE OF REPRESENTATIVES TO THE ASSUMPTION INTO OFFICE BY VICE PRESIDENT GLORIA MACAPAGAL-ARROYO AS PRESIDENT OF THE REPUBLIC OF THE PHILIPPINES, EXTENDING ITS CONGRATULATIONS AND EXPRESSING ITS SUPPORT FOR HER ADMINISTRATION AS A PARTNER IN THE ATTAINMENT OF THE NATION'S GOALS UNDER THE CONSTITUTION

WHEREAS, as a consequence of the people's loss of confidence on the ability of former President Joseph Ejercito Estrada to effectively govern, the Armed Forces of the Philippines, the Philippine National Police and majority of his cabinet had withdrawn support from him;

WHEREAS, upon authority of an *en banc* resolution of the Supreme Court, Vice President Gloria Macapagal-Arroyo was sworn in as President of the Philippines on 20 January 2001 before Chief Justice Hilario G. Davide, Jr.;

WHEREAS, immediately thereafter, members of the international community had extended their recognition to Her Excellency, Gloria Macapagal-Arroyo as President of the Republic of the Philippines;

WHEREAS, Her Excellency, President Gloria Macapagal-Arroyo has espoused a policy of national healing and reconciliation with justice for the purpose of national unity and development;

WHEREAS, it is axiomatic that the obligations of the government cannot be achieved if it is divided, thus by reason of the constitutional duty of the House of Representatives as an institution and that of the individual members, thereof of fealty to the supreme will of the people, the House of Representatives must ensure to the people a stable, continuing government and therefore must remove all obstacles to the attainment thereof;

WHEREAS, it is a concomitant duty of the House of Representatives to exert all efforts to unify the nation, to eliminate fractious tension, to heal social and political wounds, and to be an instrument of national reconciliation and solidarity as it is a direct representative of the various segments of the whole nation;

WHEREAS, without surrendering its independence, it is vital for the attainment of all the foregoing, for the House of Representatives to extend its support and collaboration to the administration of Her Excellency, President Gloria Macapagal-Arroyo, and to be a constructive partner in nation-building, the national interest demanding no less: Now, therefore, be it.

Resolved by the House of Representatives, To express its support to the assumption into office by Vice President Gloria Macapagal-Arroyo as President of the Republic of the Philippines, to extend its congratulations and to express its support for her administration as a partner in the attainment of the Nation's goals under the Constitution.

Adopted,

(Sgd.) FELICIANO BELMONTE JR.

Speaker

This Resolution was adopted by the House of Representatives on January 24, 2001.

(Sgd.) ROBERTO P. NAZARENO

Secretary General"

On February 7, 2001, the House of the Representatives passed *House Resolution No. 178* [98] which states:

"RESOLUTION CONFIRMING PRESIDENT GLORIA MACAPAGAL-ARROYO'S NOMINATION OF SENATOR TEOFISTO T. GUINGONA, JR. AS VICE PRESIDENT OF THE REPUBLIC OF THE PHILIPPINES

WHEREAS, there is a vacancy in the Office of the Vice President due to the assumption to the Presidency of Vice President Gloria Macapagal-Arroyo;

WHEREAS, pursuant to Section 9, Article VII of the Constitution, the President in the event of such vacancy shall nominate a Vice President from among the members of the Senate and the House of Representatives who shall assume office upon confirmation by a majority vote of all members of both Houses voting separately;

WHEREAS, Her Excellency, President Gloria Macapagal-Arroyo has nominated Senate Minority Leader Teofisto T. Guingona Jr., to the position of Vice President of the Republic of the Philippines;

WHEREAS, Senator Teofisto T. Guingona Jr., is a public servant endowed with integrity, competence and courage; who has served the Filipino people with dedicated responsibility and patriotism;

WHEREAS, Senator Teofisto T. Guingona, Jr. possesses sterling qualities of true statesmanship, having served the government in various capacities, among others, as Delegate to the Constitutional Convention, Chairman of the Commission on Audit, Executive Secretary, Secretary of Justice, Senator of the Philippines — qualities which merit his nomination. to the position of Vice President of the Republic: Now, therefore, be it.

Resolved as it is hereby resolved by the House of Representatives, That

the House of Representatives confirms the nomination of Senator Teofisto T. Guingona, Jr. as the Vice President of the Republic of the Philippines.

Adopted,

(Sgd.) FELICIANO BELMONTE JR.
Speaker

This Resolution was adopted by the House of Representatives on February 7, 2001.

(Sgd.) ROBERTO P. NAZARENO
Secretary General"

(4) Also, *despite receipt of petitioner's letter* claiming inability, some *twelve (12) members of the Senate* signed the following:

"RESOLUTION

WHEREAS, the recent transition in government offers the nation an opportunity for meaningful change and challenge;

WHEREAS, to attain desired changes and overcome awesome challenges the nation needs unity of purpose and resolute cohesive resolute (sic) will;

WHEREAS, the Senate of the Philippines has been the forum for vital legislative measures in unity despite diversities in perspectives;

WHEREFORE, we recognize and express support to the new government of President Gloria Macapagal-Arroyo and resolve to discharge our duties to attain desired changes and overcome the nation's challenges." [99]

On *February 7*, the *Senate* also passed *Senate Resolution No. 82* [100] which states:

"RESOLUTION CONFIRMING PRESIDENT GLORIA MACAPAGAL-ARROYO'S NOMINATION OF SEN. TEOFISTO T. GUINGONA, JR. AS VICE PRESIDENT OF THE REPUBLIC OF THE PHILIPPINES

WHEREAS, there is a vacancy in the Office of the Vice-President due to the assumption to the Presidency of Vice President Gloria Macapagal-Arroyo;

WHEREAS, pursuant to Section 9 Article VII of the Constitution, the President in the event of such vacancy shall nominate a Vice President from among the members of the Senate and the House of Representatives who shall assume office upon confirmation by a majority vote of all members of both Houses voting separately;

WHEREAS, Her Excellency, President Gloria Macapagal-Arroyo has nominated Senate Minority Leader Teofisto T. Guingona, Jr. to the position of Vice President of the Republic of the Philippines;

WHEREAS, Sen. Teofisto T. Guingona, Jr. is a public servant endowed with integrity, competence, and courage; who has served the Filipino people with dedicated responsibility and patriotism;

WHEREAS, Sen. Teofisto T. Guingona, Jr. possesses sterling qualities of true statesmanship, having served the government in various capacities, among

others, as Delegate to the Constitutional Convention, Chairman of the Commission on Audit, Executive Secretary, Secretary of Justice. Senator of the land — which qualities merit his nomination to the position of Vice President of the Republic: Now, therefore, be it.

Resolved, *as it is hereby resolved*, That the Senate confirm the nomination of Sen. Teofisto T Guingona, Jr. as Vice President of the Republic of the Philippines.

Adopted,

(Sgd.) AQUILINO Q. PIMENTEL JR.
President of the Senate

This Resolution was adopted by the Senate on February 7, 2001.

(Sgd.) LUTGARDO B. BARBO
Secretary of the Senate"

On the same date, February 7, the *Senate* likewise passed *Senate Resolution No. 83* [101] which states:

"RESOLUTION RECOGNIZING THAT THE IMPEACHMENT COURT IS *FUNCTUS OFFICIO*

Resolved, as it is hereby resolved. That the Senate recognize that the Impeachment Court is *functus officio* and has been terminated.

Resolved, further, That the Journals of the Impeachment Court of Monday, January 15, Tuesday, January 16 and Wednesday, January 17, 2001 be considered approved.

Resolved, further, That the records of the Impeachment Court including the 'second envelope' be transferred to the Archives of the Senate for proper safekeeping and preservation in accordance with the Rules of the Senate. Disposition and retrieval thereof shall be made only upon written approval of the Senate President.

Resolved, finally. That all parties concerned be furnished copies of this Resolution.

Adopted,

(Sgd.) AQUILINO Q. PIMENTEL, JR.
President of the Senate

This Resolution was adopted by the Senate on February 7, 2001.

(Sgd.) LUTGARDO B. BARBO
Secretary of the Senate"

(5) On February 8, the Senate also passed *Resolution No. 84* "certifying to the existence of a vacancy in the Senate and calling on the COMELEC to fill up such vacancy through election to be held simultaneously with the regular election on May 14, 2001 and the senatorial candidate garnering the thirteenth (13th) highest number of votes shall serve only for the unexpired term of Senator Teofisto T. Guingona, Jr."

(6) *Both houses of Congress* started sending *bills to be signed into law* by respondent *Arroyo as President*.

(7) *Despite the lapse of time* and still without any functioning Cabinet, without any recognition from any sector of government, and without any support from the Armed Forces of the Philippines and the Philippine National Police, the petitioner continues to claim that his inability to govern is only momentary.

What leaps to the eye from these irrefutable facts is that both houses of Congress have recognized respondent Arroyo as the President. Implicitly clear in that recognition is the premise that the inability of petitioner Estrada is no longer temporary. Congress has clearly rejected petitioner's claim of inability.

The question is whether this Court has jurisdiction to review the claim of temporary inability of petitioner Estrada and thereafter *revise the decision of both Houses of Congress* recognizing respondent Arroyo as President of the Philippines. Following *Tañada v. Cuenco* , [102] we hold that this Court cannot "exercise its judicial power for this is an issue "in regard to which *full* discretionary authority has been delegated to the Legislative . . . branch of the government." Or to use the language in *Baker vs. Carr*, [103] there is a "textually demonstrable constitutional commitment of the issue to a coordinate political department or a lack of judicially discoverable and manageable standards for resolving it." Clearly, the Court cannot pass upon petitioner's claim of inability to discharge the powers and duties of the presidency. *The question is political in nature and addressed solely to Congress by constitutional fiat*. It is a political issue which cannot be decided by this Court without transgressing the principle of separation of powers.

In fine, even if the petitioner can prove that he did not resign, still, he cannot successfully claim that he is a President on leave on the ground that he is merely unable to govern temporarily. That claim has been laid to rest by Congress and the decision that respondent Arroyo is the de jure President made by a co-equal branch of government cannot be reviewed by this Court.

IV

Whether or not the petitioner enjoys immunity from suit. Assuming he enjoys immunity, the extent of the immunity

Petitioner Estrada makes two submissions: *first*, the cases filed against him before the respondent Ombudsman should be prohibited because he has not been convicted in the impeachment proceedings against him; and *second*, he enjoys *immunity* from *all* kinds of suit, whether criminal or civil.

Before resolving petitioner's contentions, a revisit of our legal history on executive immunity will be most enlightening. The doctrine of executive immunity in this jurisdiction emerged *as a case law*. In the *1910* case *of Forbes, etc. vs. Chuoco Tiaco and Crossfield*, [104] the respondent Tiaco, a Chinese citizen, sued petitioner W. Cameron Forbes, Governor-General of the Philippine Islands, J.E. Harding and C.R. Trowbridge, Chief of Police and Chief of the Secret Service of the City of Manila, respectively, for damages for allegedly conspiring to deport him to China. In granting a

writ of prohibition, this Court, speaking thru Mr. Justice Johnson, held:

> "The principle of non-liability, as herein enunciated, does not mean that the judiciary has no authority to touch the acts of the Governor-General; that he may, under cover of his office, do what he will, unimpeded and unrestrained. Such a construction would mean that tyranny, under the guise of the execution of the law, could walk defiantly abroad, destroying rights of person and of property, wholly free from interference of courts or legislatures. This does not mean, either, that a person injured by the executive authority by an act unjustifiable under the law has no remedy, but must submit in silence. On the contrary, it means, simply, that the Governor-General, like the judges of the courts and the members of the Legislature, may not be personally mulcted in civil damages for the consequences of an act executed in the performance of his official duties. The judiciary has full power to, and will, when the matter is properly presented to it and the occasion justly warrants it, declare an act of the Governor-General illegal and void and place as nearly as possible in *status quo* any person who has been deprived his liberty or his property by such act. This remedy is assured to every person, however humble or of whatever country, when his personal or property rights have been invaded, even by the highest authority of the state. The thing which the judiciary can not do is mulct the Governor-General personally in damages which result from the performance of his official duty, any more than it can a member of the Philippine Commission or the Philippine Assembly. Public policy forbids it.
>
> Neither does this principle of non-liability mean that the chief executive may not be personally sued at all in relation to acts which he claims to perform as such official. On the contrary, it clearly appears from the discussion heretofore had, particularly that portion which touched the liability of judges and drew an analogy between such liability and that of the Governor-General, that the latter is liable when he acts in a case so plainly outside of his power and authority that he can not be said to have exercised discretion in determining whether or not he had the right to act. What is held here is that he will be protected from personal liability for damages not only when he acts within his authority, but also when he is without authority, provided he actually used discretion and judgment, that is, the judicial faculty, in determining whether he had authority to act or not. In other words, he is entitled to protection *in determining the question of his authority*. If he decide wrongly, he is still protected provided the question of his authority was one over which two men, reasonably qualified for that position, might honestly differ; but he is not protected if the lack of authority to act is so plain that two such men could not honestly differ over its determination. In such case, he acts, not as Governor-General but as a private individual, and, as such, must answer for the consequences of his act."

Mr. Justice Johnson underscored the consequences if the Chief Executive was not granted immunity from suit, *viz*: ". . . Action upon important matters of state delayed; the time and substance of the chief executive spent in wrangling litigation; disrespect engendered for the person of one of the highest officials of the State and for the office he occupies; a tendency to unrest and disorder; resulting in a way, in a distrust as to the integrity of government itself." [105]

Our *1935 Constitution* took effect but it *did not contain any specific provision on executive immunity*. Then came the tumult of the martial law years under the late President Ferdinand E. Marcos and the *1973 Constitution* was born. In 1981, it was

amended and *one of the amendments involved executive immunity*. Section 17, Article VII stated:

> "The President shall be immune from suit during his tenure. Thereafter, no suit whatsoever shall lie for official acts done by him or by others pursuant to his specific orders during his tenure.
>
> The immunities herein provided shall apply to the incumbent President referred to in Article XVII of this Constitution."

In his second Vicente G. Sinco Professional Chair Lecture entitled, "Presidential Immunity And All The King's Men: The Law Of Privilege As A Defense To Actions For Damages," [106] petitioner's learned counsel, former Dean of the UP College of Law, Atty. Pacifico Agabin, brightlined the modifications effected by this constitutional amendment on the existing law on executive privilege. To quote his disquisition:

> "In the Philippines, though, we sought to do the Americans one better by enlarging and fortifying the absolute immunity concept. First, we extended it to shield the President not only from civil claims but also from criminal cases and other claims. Second, we enlarged its scope so that it would cover even acts of the President outside the scope of official duties. And third, we broadened its coverage so as to include not only the President but also other persons, be they government officials or private individuals, who acted upon orders of the President. It can be said that at that point most of us were suffering from AIDS (or absolute immunity defense syndrome)."

The Opposition in the then Batasang Pambansa sought the repeal of this Marcosian concept of executive immunity in the 1973 Constitution. The move was led by then Member of Parliament, now Secretary of Finance, Alberto Romulo, who argued that the *after incumbency immunity* granted to President Marcos violated the principle that a public office is a public trust. He denounced the immunity as a return to the anachronism "the king can do no wrong." [107] The effort failed.

The 1973 Constitution ceased to exist when President Marcos was ousted from office by the People Power revolution in 1986. When the *1987 Constitution* was crafted, *its framers did not reenact* the executive immunity provision of the 1973 Constitution. The following explanation was given by delegate J. Bernas, *viz*.: [108]

> "Mr. Suarez. Thank you.
>
> The last question is with reference to the Committee's omitting in the draft proposal the immunity provision for the President. I agree with Commissioner Nolledo that the Committee did very well in striking out this second sentence, at the very least, of the original provision on immunity from suit under the 1973 Constitution. But would the Committee members not agree to a restoration of at least the first sentence that the President shall be immune from suit during his tenure, considering that if we do not provide him that kind of an immunity, he might be spending all his time facing litigations, as the President-in-exile in Hawaii is now facing litigations almost daily?
>
> Fr. Bernas. The reason for the omission is that we consider it understood in present jurisprudence that during his tenure he is immune from suit.
>
> Mr. Suarez. So there is no need to express it here.

Fr. Bernas. There is no need. It was that way before. The only innovation made by the 1973 Constitution was to make that explicit and to add other things.

Mr. Suarez. On that understanding, I will not press for any more query, Madam President.

I thank the Commissioner for the clarification."

We shall now rule on the contentions of petitioner in the light of this history. We reject his argument that he cannot be prosecuted for the reason that he must first be convicted in the impeachment proceedings. The impeachment trial of petitioner Estrada was aborted by the walkout of the prosecutors and by the events that led to his loss of the presidency. Indeed, on February 7, 2001, the Senate passed Senate Resolution No. 83 "Recognizing that the Impeachment Court is *Functus Officio*. " [109] Since the Impeachment Court is now *functus officio*, it is untenable for petitioner to demand that he should first be impeached and then convicted before he can be prosecuted. The plea if granted, would put a perpetual bar against his prosecution. Such a submission has nothing to commend itself for it will place him in a better situation than a non-sitting President who has not been subjected to impeachment proceedings and yet can be the object of a criminal prosecution. To be sure, the debates in the Constitutional Commission make it clear that when impeachment proceedings have become moot due to the resignation of the President, the proper criminal and civil cases may already be filed against him, *viz*: [110]

"xxx xxx xxx

Mr. Aquino. On another point, if an impeachment proceeding has been filed against the President, for example, and the President resigns before judgment of conviction has been rendered by the impeachment court or by the body, how does it affect the impeachment proceeding? Will it be necessarily dropped?

Mr. Romulo. If we decide the purpose of impeachment to remove one from office, then his resignation would render the case moot and academic. However, as the provision says, the criminal and civil aspects of it may continue in the ordinary courts."

This is in accord with our ruling in *In Re: Saturnino Bermudez* [111] that "incumbent Presidents are immune from suit or from being brought to court during the period of their incumbency and tenure" *but not beyond*. Considering the peculiar circumstance that the impeachment process against the petitioner has been aborted and thereafter he lost the presidency, petitioner Estrada cannot demand as a condition *sine qua non* to his criminal prosecution before the Ombudsman that he be convicted in the impeachment proceedings. His reliance on the case of *Lecaroz vs. Sandiganbayan* [112] and related cases [113] are *inapropos* for they have a different factual milieu.

We now come to the *scope of immunity* that can be claimed by petitioner as a non-sitting President. The *cases* filed against petitioner Estrada are *criminal in character*. *They involve plunder, bribery and graft and corruption*. By no stretch of the imagination can these crimes, especially plunder which carries the death penalty, be covered by the alleged mantle of immunity of a non-sitting president. Petitioner cannot cite any decision of this Court licensing the President to commit criminal acts and wrapping him with post-tenure immunity from liability. *It will be anomalous to hold that*

immunity is an inoculation from liability for unlawful acts and omissions. The rule is that unlawful acts of public officials are not acts of the State and the officer who acts illegally is not acting as such but stands in the same footing as any other trespasser. [114]

Indeed, a critical reading of current literature on executive immunity will reveal *a judicial disinclination to expand the privilege* especially *when it impedes the search for truth or impairs the vindication of a right*. In the *1974 case of US v. Nixon*, [115] US President Richard Nixon, a sitting President, was subpoenaed to produce certain recordings and documents relating to his conversations with aids and advisers. Seven advisers of President Nixon's associates were facing charges of conspiracy to obstruct justice and other offenses which were committed in a burglary of the Democratic National Headquarters in Washington's Watergate Hotel during the 1972 presidential campaign. President Nixon himself was named an unindicted co-conspirator. President Nixon moved to quash the subpoena on the ground, among others, that the President was not subject to judicial process and that he should first be impeached and removed from office before he could be made amenable to judicial proceedings. The claim was rejected by the US Supreme Court. It concluded that "when the ground for asserting privilege as to subpoenaed materials sought for use in a criminal trial is based only on the generalized interest in confidentiality, it cannot prevail over the fundamental demands of due process of law in the fair administration of criminal justice." In the 1982 case of *Nixon v. Fitzgerald*, [116] the US Supreme Court further held that the immunity of the President from *civil damages covers only "official acts*." Recently, the US Supreme Court had the occasion to reiterate this doctrine in the case of *Clinton v. Jones* [117] where it held that the US President's immunity from suits for money damages arising out of their official acts is inapplicable to unofficial conduct.

There are more reasons not to be sympathetic to appeals to stretch the scope of executive immunity in our jurisdiction. One of the great themes of the 1987 Constitution is that *a public office is a public trust*. [118] It declared as a state policy that "(t)he State shall maintain honesty and integrity in the public service and take positive and effective measures against graft and corruption." [119] It ordained that "(p)ublic officers and employees must at all times be accountable to the people, serve them with utmost responsibility, integrity, loyalty, and efficiency, act with patriotism and justice, and lead modest lives." [120] It set the rule that "(t)he right of the State to recover properties unlawfully acquired by public officials or employees, from them or from their nominees or transferees, shall not be barred by prescription, laches or estoppel." [121] It maintained the Sandiganbayan as an anti-graft court. [122] It created the office of the Ombudsman and endowed it with enormous powers, among which is to "(i)nvestigate on its own, or on complaint by any person, any act or omission of any public official, employee, office or agency, when such act or omission appears to be illegal, unjust, improper, or inefficient." [123] The Office of the Ombudsman was also given fiscal autonomy. [124] *These constitutional policies will be devalued if we sustain petitioner's claim that a non-sitting president enjoys immunity from suit for criminal acts committed during his incumbency*.

V

Whether or not the prosecution of petitioner Estrada should be enjoined due to prejudicial publicity

Petitioner also contends that the respondent Ombudsman should be stopped from conducting the investigation of the cases filed against him due to the barrage of

prejudicial publicity on his guilt. He submits that the respondent Ombudsman has developed bias and is all set to file the criminal cases in violation of his right to due process.

There are two (2) principal legal and philosophical schools of thought on how to deal with the rain of unrestrained publicity during the investigation and trial of high profile cases. [125] The *British approach* the problem with the presumption that publicity will prejudice a jury. Thus, English courts readily stay and stop criminal trials when the right of an accused to fair trial suffers a threat. [126] The *American approach* is different. US courts assume a *skeptical* approach about the potential effect of pervasive publicity on the right of an accused to a fair trial. They have developed different strains of tests to resolve this issue, *i.e.*, substantial probability of irreparable harm, strong likelihood, clear and present danger, etc.

This is *not the first time* the issue of trial by publicity has been raised in this Court to stop the trials or annul convictions in high profile criminal cases. [127] In *People vs. Teehankee, Jr.*, [128] later reiterated in the case of *Larranaga vs. Court of Appeals, et al.*, [129] we laid down the doctrine that:

> "We cannot sustain appellant's claim that he was denied the right to impartial trial due to prejudicial publicity. It is true that the print and broadcast media gave the case at bar pervasive publicity, just like all high profile and high stake criminal trials. *Then and now, we rule that the right of an accused to a fair trial is not incompatible to a free press*. To be sure, responsible reporting enhances an accused's right to a fair trial for, as well pointed out, a responsible press has always been regarded as the handmaiden of effective judicial administration, especially in the criminal field . . . . The press does not simply publish information about trials but guards against the miscarriage of justice by subjecting the police, prosecutors, and judicial processes to extensive public scrutiny and criticism.
>
> Pervasive publicity is not *per se* prejudicial to the right of an accused to fair trial. The mere fact that the trial of appellant was given a day-to-day, gavel-to-gavel coverage does not *by itself* prove that the publicity so permeated the mind of the trial judge and impaired his impartiality. For one, it is impossible to seal the minds of members of the bench from pre-trial and other off-court publicity of sensational criminal cases. The state of the art of our communication system brings news as they happen straight to our breakfast tables and right to our bedrooms. These news form part of our everyday menu of the facts and fiction of life. For another, our idea of a fair and impartial judge is not that of a hermit who is out of touch with the world. We have not installed the jury system whose members are overly protected from publicity lest they lose their impartiality. . . . Our judges are learned in the law and trained to disregard off-court evidence and on-camera performances of parties to a litigation. Their mere exposure to publications and publicity stunts does not *per se* fatally infect their impartiality.
>
> At best, appellant can only conjure *possibility of prejudice* on the part of the trial judge due to the barrage of publicity that characterized the investigation and trial of the case. In *Martelino, et al. v. Alejandro, et al*, we rejected this standard of possibility of prejudice and adopted the test of actual prejudice as we ruled that to warrant a finding of prejudicial publicity, there must be allegation and proof that the judges have been unduly influenced, not simply that they might be,

by the barrage of publicity. In the case at bar, the records do not show that the trial judge developed *actual bias* against appellant as a consequence of the extensive media coverage of the pre-trial and trial of his case. The *totality of circumstances of the case* does not prove that the trial judge acquired a *fixed* opinion as a result of prejudicial publicity which is incapable of change even by evidence presented during the trial. Appellant has the burden to prove this actual bias and he has not discharged the burden."

We expounded further on this doctrine in the subsequent case of *Webb vs. Hon. Raul de Leon, etc.* [130] and its companion cases, *viz*.:

"Again, petitioners raise the effect of prejudicial publicity on their right to due process while undergoing preliminary investigation. We find no procedural impediment to its early invocation considering the substantial risk to their liberty while undergoing a preliminary investigation.

xxx xxx xxx

The democratic settings, media coverage of trials of sensational cases cannot be avoided and oftentimes, its excessiveness has been aggravated by kinetic developments in the telecommunications industry. For sure, few cases can match the high volume and high velocity of publicity that attended the preliminary investigation of the case at bar. Our daily diet of facts and fiction about the case continues unabated even today. Commentators still bombard the public with views not too many of which are sober and sublime. Indeed, even the principal actors in the case — the NBI, the respondents, their lawyers and their sympathizers — have participated in this media blitz. The possibility of media abuses and their threat to a fair trial notwithstanding, criminal trials cannot be completely closed to the press and public. In the seminal case of *Richmond Newspapers, Inc. v. Virginia*, it was wisely held:

xxx xxx xxx

(a) The historical evidence of the evolution of the criminal trial in Anglo-American justice demonstrates conclusively that at the time this Nation's organic laws were adopted, criminal trials both here and in England had long been presumptively open, thus giving assurance that the proceedings were conducted fairly to all concerned and discouraging perjury, the misconduct of participants, or decisions based on secret bias or partiality. In addition, the significant community therapeutic value of public trials was recognized: when a shocking crime occurs, a community reaction of outrage and public protest often follows, and thereafter the open processes of justice serve an important prophylactic purpose, providing an outlet for community concern, hostility, and emotion. To work effectively, it is important that society's criminal process 'satisfy the appearance of justice,' Offutt v. United States, 348 US 11, 14, 99 L Ed 11, 75 S Ct 11, which can best be provided by allowing people to observe such process. From this unbroken, uncontradicted history, supported by reasons as valid today as in centuries past, it must be concluded that a presumption of openness inheres in the very nature of a criminal trial under this Nation's system of justice, Cf., e.g., Levine v. United States, 362 US 610, 4 L Ed 2d 989, 80 S Ct 1038.

(b) The freedoms of speech, press, and assembly, expressly

guaranteed by the First Amendment, share a common core purpose of assuring freedom of communication on matters relating to the functioning of government. In guaranteeing freedoms such as those of speech and press, the First Amendment can be read as protecting the right of everyone to attend trials so as give meaning to those explicit guarantees; the First Amendment right to receive information and ideas means, in the context of trials, that the guarantees of speech and press, standing alone, prohibit government from summarily closing courtroom doors which had long been open to the public at the time the First Amendment was adopted. Moreover, the right of assembly is also relevant, having been regarded not only as an independent right but also as a catalyst to augment the free exercise of the other First Amendment rights with which it was deliberately linked by the draftsmen. A trial courtroom is a public place where the people generally — and representatives of the media — have a right to be present, and where their presence historically has been thought to enhance the integrity and quality of what takes place.

(c) Even though the Constitution contains no provision which by its terms guarantees to the public the right to attend criminal trials, various fundamental rights, not expressly guaranteed, have been recognized as indispensable to the enjoyment of enumerated rights. The right to attend criminal trial is implicit in the guarantees of the First Amendment: without the freedom to attend such trials, which people have exercised for centuries, important aspects of freedom of speech and of the press could be eviscerated.'

Be that as it may, we recognize that pervasive and prejudicial publicity under certain circumstances can deprive an accused of his due process right to fair trial. Thus, in *Martelino, et al. vs. Alejandro, et al*, we held that to warrant a finding of prejudicial publicity there must be *allegation and proof* that the judges have been unduly influenced, not simply that they might be, by the barrage of publicity. In the case at bar, we find nothing in the records that will prove that the tone and content of the publicity that attended the investigation of petitioners fatally infected the fairness and impartiality of the DOJ Panel. Petitioners cannot just rely on the subliminal effects of publicity on the sense of fairness of the DOJ Panel, for these are basically unbeknown and beyond knowing. To be sure, the DOJ Panel is composed of an Assistant Chief State Prosecutor and Senior State Prosecutors. Their long experience in criminal investigation is a factor to consider in determining whether they can easily be blinded by the klieg lights of publicity. Indeed, their 26-page Resolution carries no indubitable *indicia* of bias for it does not appear that they considered any extra-record evidence except evidence properly adduced by the parties. The length of time the investigation was conducted despite its summary nature and the generosity with which they accommodated the discovery motions of petitioners speak well of their fairness. At no instance, we note, did petitioners seek the disqualification of any member of the DOJ Panel on the ground of bias resulting from their bombardment of prejudicial publicity." (emphasis supplied)

Applying the above ruling, we hold that *there is not enough evidence to warrant this Court to enjoin the preliminary investigation of the petitioner by the respondent Ombudsman*. Petitioner needs to offer more than hostile headlines to discharge his burden of proof. [131] He needs to show more weighty social science evidence to successfully prove the impaired capacity of a judge to render a bias free decision. Well

to note, the cases against the petitioner are *still undergoing* preliminary investigation by a special panel of prosecutors in the office of the respondent Ombudsman. No allegation whatsoever has been made by the petitioner that the minds of the members of this special panel have already been infected by bias because of the pervasive prejudicial publicity against him. Indeed, the special panel has yet to come out with its findings and the Court cannot second guess whether its recommendation will be unfavorable to the petitioner.

The records show that petitioner has instead charged respondent Ombudsman himself with bias. To quote petitioner's submission, the respondent Ombudsman "has been influenced by the barrage of slanted news reports, and he has buckled to the threats and pressures directed at him by the mobs." [132] News reports have also been quoted to establish that the respondent Ombudsman has already prejudged the cases of the petitioner [133] and it is postulated that the prosecutors investigating the petitioner will be influenced by this bias of their superior.

Again, we hold that the *evidence* proffered by the petitioner is *insubstantial*. The accuracy of the news reports referred to by the petitioner cannot be the subject of judicial notice by this Court especially in light of the denials of the respondent Ombudsman as to his alleged prejudice and the presumption of good faith and regularity in the performance of official duty to which he is entitled. *Nor can we adopt the theory of derivative prejudice of petitioner, i.e., that the prejudice of respondent Ombudsman flows to his subordinates*. In truth, our Revised Rules of Criminal Procedure, give investigating prosecutors the independence to make their own findings and recommendations albeit they are reviewable by their superiors. [134] They can be reversed but they can not be compelled to change their recommendations nor can they be compelled to prosecute cases which they believe deserve dismissal. In other words, investigating prosecutors should not be treated like unthinking slot machines. Moreover, if the respondent Ombudsman resolves to file the cases against the petitioner and the latter believes that the finding of probable cause against him is the result of bias, he still has the remedy of assailing it before the proper court.

VI

Epilogue

A word of caution to the "hooting throng." The cases against the petitioner will now acquire a different dimension and then move to a new stage — the Office of the Ombudsman. Predictably, the call from the majority for instant justice will hit a higher decibel while the gnashing of teeth of the minority will be more threatening. It is the sacred duty of the respondent Ombudsman to balance the right of the State to prosecute the guilty and the right of an accused to a fair investigation and trial which has been categorized as the "most fundamental of all freedoms." [135] To be sure, the duty of a prosecutor is more to do justice and less to prosecute. His is the obligation to insure that the preliminary investigation of the petitioner shall have a circus-free atmosphere. He has to provide the restraint against what Lord Bryce calls "the impatient vehemence of the majority." Rights in a democracy are not decided by the mob whose judgment is dictated by rage and not by reason. Nor are rights necessarily resolved by the power of number for in a democracy, the dogmatism of the majority is not and should never be the definition of the rule of law. If democracy has proved to be the best form of government, it is because it has respected the right of the minority to convince the majority that it is wrong. Tolerance of multiformity of thoughts, however offensive they may be, is the key to man's progress from the cave to civilization. Let us not throw

away that key just to pander to some people's prejudice.

IN VIEW WHEREOF, the petitions of Joseph Ejercito Estrada challenging the respondent Gloria Macapagal-Arroyo as the *de jure* 14th President of the Republic are DISMISSED.

SO ORDERED.

Bellosillo, Melo, Quisumbing, Gonzaga-Reyes and *De Leon, Jr., JJ.,* concur.

Buena, J., concurs in the result.

Davide, Jr., C.J., took no part in view of reasons given in open court and in the Extended Explanation.

Kapunan, J., I concur in the result. I reserve the filing of a separate opinions.

Panganiban, J., took no part per Letter of Inhibition dated Feb. 15, 2001 mentioned in footnote 51 of *ponencia*.

Pardo, J., concurs in the result. I believe that petitioner was constrained to resign. Reserve my vote in immunity from suit.

Ynares-Santiago, J., I concur in the result. I reserve the filing of separate opinion.

Sandoval-Gutierrez, J ., I concur in the result and reserve the right to write a separate opinion.

Footnotes

1. Philippine Daily Inquirer (PDI), October 5, 2000, pp. A1 and A17.
2. PDI, October 6, 2000, pp. A1 and A18.
3. *Ibid.*, October 12, 2000, pp. A1 and A17.
4. *Ibid.*, October 14, 2000, p. A1.
5. *Ibid.*, October 18, 2000, p. A1.
6. *Ibid.*, October 13, 2000, pp. A1 and A21.
7. *Ibid.*, October 26, 2000, p. A1.
8. *Ibid.*, November 2, 2000, p. A1.
9. *Ibid.*, November 3, 2000, p. A1.
10. *Ibid.*, November 4, 2000, p. A1.
11. The complaint for impeachment was based on the following grounds: bribery, graft and corruption, betrayal of public trust, and culpable violation of the Constitution.
12. *Ibid.*, November 14, 2000, p. A1.
13. *Ibid.*, November 21, 2000, p. A1.
14. *Ibid.*, December 8, 2000, p. A1.

15. *Ibid*., December 23, 2000, pp. A1 and A19.

16. *Ibid*., January 12, 2001, p. A1.

17. Those who voted "yes" to open the envelope were: Senators Pimentel, Guingona, Drilon, Cayetano, Roco, Legarda, Magsaysay, Flavier, Biazon, Osmeña III. Those who vote "no" were Senators Ople, Defensor-Santiago, John Osmeña, Aquino-Oreta, Coseteng, Enrile, Honasan, Jaworski, Revilla, Sotto III and Tatad.

18. Philippine Star, January 17, 2001, p. 1.

19. *Ibid*., January 18, 2001, p. 4.

20. *Ibid*., p. 1.

21. *Ibid*., January 19, 2001, pp. 1 and 8.

22. "Erap's Final Hours Told" by Edgardo Angara, (hereinafter referred to as "Angara Diary"), PDI, February 4, 2001, p. A16.

23. Philippine Star, January 20, 2001, p. 4.

24. PDI, February 4, 2001, p. A16.

25. Philippine Star, January 20, 2001, pp. 1 and 11.

26. *Ibid*., January 20, 2001, p. 3.

27. PDI, February 5, 2001, pp. A1 and A6.

28. Philippine Star, January 21, 2001, p. 1.

29. PDI, February 6, 2001, p. A12.

30. Annex A, DOJ-OSG, Joint Comment; *Rollo*, G.R. Nos. 146710-15, p. 288.

31. Annex A-1, Petition, G.R. Nos. 146710-15; *Rollo*, p. 34.

32. *Ibid*.

33. Annex A, Petition, G.R. Nos. 146710-15; *Rollo*, p. 33.

34. Philippine Star, January 21, 2001, p. 1; January 23, 2001, pp. 1 and 4; January, 24, 2001, p. 3; PDI, January 25, 2001, pp. A1 and A15.

35. Philippine Star, January 24, 2001, p. 1.

36. PDI, January 25, 2001, p. 1.

37. *Ibid*., p. 2.

38. Annex C, DOJ-OSG Joint Comment; *Rollo*, GR Nos. 146710-15, p. 290.

39. Annex D, *id*; *ibid*., p. 292.

40 PDI January 27, 2001, p. 1.

41. PDI, February 13, 2001, p. A2.

42. Philippine Star, February 13, 2001, p. A2.

43. Annex E, *id.*; *ibid.*, p. 295.

44. PDI, February 8, 2001, pp. A1 & A19.

45. Annex F, *id.*; *ibid.*, p. 297.

46. PDI, February 10, 2001, p. A2.

47. Annex G, *id.*; *ibid.*, p. 299.

48. PDI, February 8, 2001, p. A19.

49. Philippine Star, February 3, 2001, p. 4.

50. Acceptance of Gloria is Nationwide," Mahar Mangahas, Manila Standard, February 16, 2001, p. 14.

51. See The Chief Justice's Extended Explanation for His Voluntary Inhibition; *Rollo*, GR Nos. 146710-15, pp. 525-527.

52. See Letter of inhibition of Associate Justice Panganiban; *Rollo*, GR No. 146738, pp. 120-125.

53. *Rollo*, G.R. No. 146738, p. 134.

54. Leonard de Vera and Dennis Funa; *see* their Memorandum, pp. 16-27; *Rollo*, GR Nos. 146710-15, Vol. III, pp. 809-820.

55. Gunther and Sullivan, Constitutional Law, 13th ed., pp. 45-46.

56. 369 US 186, 82 S. Ct. 691, 7 L. ed 2d 663, 686 (1962).

57. *See* e.g., *Integrated Bar of the Philippines v. Hon. Zamora, et al*, GR No. 141284, 15 August 2000; *Miranda v. Aguirre*, 314 SCRA 603 (1999); *Santiago v. Guingona*, 298 SCRA 756 (1998); *Tatad v. Secretary of the Department of Energy*, 281 SCRA 330 (1997); *Marcos v. Manglapus*, 177 SCRA 668 (1989); *Gonzales v. COMELEC*, 129 Phil. 7 (1967); *Mabanag v. Lopez Vito*, 78 Phil 1 (1947); *Avelino v. Cuenco* 83 Phil. 17 (1949); *Vera v. Avelino*, 77 Phil 192 (1946); *Alejandrino v. Quezon*, 46 Phil 83 (1924).

58. 103 Phil 1051, 1068 (1957).

59. Section 1, Article VIII, 1987 Constitution.

60. Note that the early treatises on Constitutional Law are discourses on limitations of power typical of which is, Cooley's Constitutional Limitations.

61. Joint Resolution, *Lawyers League for a Better Philippines and/or Oliver A. Lozano v. Pres. Corazon C. Aquino, et al.*, GR No. 73748; *People's Crusade for Supremacy of the Constitution, etc. v. Mrs. Cory Aquino, et al.*, GR No. 73972; and *Councilor Clifton U. Ganay v. Corazon C. Aquino, et al.*, GR No. 73990, May 22, 1986.

62. Letter of Associate Justice Reynato S. Puno, 210 SCRA 597 [1992].

63. Proclamation No. 3 (1986).

64. It states:

I, Gloria Macapagal-Arroyo, Vice President of the Philippines, do solemnly swear that I

will faithfully and conscientiously fulfill my duties as President of the Philippines, preserve and defend its Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the nation.

So help me God.

(Annex 1, Comment of the Ombudsman; *Rollo*, GR Nos. 146710-15, Vol. II, p. 332)

65. *See* "Filipinas Despues de Cien Años" (The Philippines a Century Hence), p. 62.

66. The guaranty was taken from Amendment I of the US Constitution which provides: "Congress shall make no law respecting an establishment of religion or prohibiting the free exercise thereof or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievance."

67. See section 8, Article IV.

68. See section 9, Article IV.

69. Emerson, The System of Freedom of Expression, 1970 ed., p .6, et seq.

70. *Ibid*. *See* also concurring opinion of Justice Branders in Whitney v. California (74 US 357, 375-76) where he said " the greatest menace to freedom is an inert people "

71. 307 US 496 (1939).

72. Chafee, Jr., Free Speech in the United States, 1946 ed., pp. 413-415, 421.

73. 260 SCRA 798 (1996).

74. Section 1, Article II of the 1987 Constitution reads:

"The Philippines is a democratic and republican State. Sovereignty resides in the people and all government authority emanates from them."

75. *Infra* at 26.

76. *Infra* at 41.

77. 1 Cranch (5 US) 137, 2 L ed 60 (1803).

78. *Gonzales v. Hernandez*, 2 SCRA 228 (1961).

79. *See* its February 4, 5, and 6, 2001 issues.

80. PDI, February 4, 2001, p. A1.

81. *Ibid*.

82. *Ibid*.

83. *Ibid*.

84. *Ibid*.

85. *Ibid*.

86. PDI, February 5, 2001, p. A1.

87. *Ibid*., p. A-1.

88. *Ibid*.

89. PDI, February 5, 2001, p. A6.

90. PDI, February 6, 2001, p. A1.

91. In the Angara Diary which appeared in the PDI issue of February 5, 2001, Secretary Angara stated that the letter came from Asst. Secretary Boying Remulla; that he and Political Adviser Banayo opposed it; and that PMS head Macel Fernandez believed that the petitioner would not sign the letter.

92. Congressional Record, 4th Congress, 2nd Session, March 4, 1959, pp. 603-604.

93. *Id*., May 9, 1959, p. 1988.

94. Section 18 (2), Article III of the 1987 Constitution provides: "No involuntary servitude in any form shall exist except as a punishment for a crime whereof the party shall have been duly convicted."

95. Reply Memorandum, p. 3; *Rollo*, GR Nos. 146710-15, Vol. IV.

96. House Resolution No. 175, 11th Congress, 3rd Session (2001), reads:

"RESOLUTION EXPRESSING THE FULL SUPPORT OF THE HOUSE OF REPRESENTATIVES TO THE ADMINISTRATION OF HER EXCELLENCY, GLORIA MACAPAGAL-ARROYO, PRESIDENT OF THE PHILIPPINES

WHEREAS, on January 20, 2001, Vice President Gloria Macapagal-Arroyo was sworn in as the 14th President of the Philippines;

WHEREAS, her ascension to the highest office of the land under the dictum, "the voice of the people is the voice of God" establishes the basis of her mandate on integrity and morality in government;

WHEREAS, the House of Representatives joins the church, youth, labor and business sectors in fully supporting the President's strong determination to succeed;

WHEREAS, the House of Representatives is likewise one with the people in supporting President Gloria Macapagal-Arroyo's call to start the healing and cleansing process for a divided nation in order to 'build an edifice of peace, progress and economic stability' for the country: Now, therefore, be it

Resolved by the House of Representatives, To express its full support to the administration of Her Excellency, Gloria Macapagal-Arroyo, 14th President of the Philippines.

Adopted,

(Sgd.) FELICIANO BELMONTE JR.

Speaker

This Resolution was adopted by the House of Representatives on January 24, 2001.

(Sgd.) ROBERTO P. NAZARENO

Secretary-General"

97. 11th Congress, 3rd Session (2001).

98. 11th Congress, 3rd Session (2001).

99. Annex 2, Comment of Private Respondents De Vera, et al.; *Rollo*, GR No. 146710-15, Vol. II, p. 231.

100. 11th Congress, 3rd Session (2001).

101. 11th Congress, 3rd Session (2001).

102. 103 Phil 1051, 1067 (1957).

103. *Baker vs. Carr*, *supra* at 686 headnote 29.

104. 16 Phil 534 (1910).

105. The logical basis for executive immunity from suit was originally founded upon the idea that the "*King can do no wrong*." [R.J. Gray, *Private Wrongs of Public Servants*, 47 CAL. L. REV.. 303 (1959)]. The concept thrived at the time of absolute monarchies in medieval England when it was generally accepted that the seat of sovereignty and governmental power resides in the throne. During that historical juncture, it was believed that allowing the King to be sued in his courts was a contradiction to the sovereignty of the King.

With the development of democratic thoughts and institutions, this kind of rationalization eventually lost its moral force. In the United States, for example, the common law maxim regarding the King's infallibility had limited reception among the framers of the Constitution. [J. Long, *How to Sue the President: A Proposal for Legislation Establishing the Extent of Presidential Immunity*, 30 VAL. U. L. REV. 283 (1995)]. Still, the doctrine of presidential immunity found its way of surviving in modern political times, retaining both its relevance and vitality. The privilege, however, is now justified for different reasons. First, the doctrine is rooted in the constitutional tradition of separation of powers and supported by history. [*Nixon v. Fitzgerald*, 451 U. S. 731 (1982)]. The separation of powers principle is viewed as demanding the executive's independence from the judiciary, so that the President should not be subject to the judiciary's whim. Second, by reason of public convenience, the grant is to assure the exercise of presidential duties and functions free from any hindrance or distraction, considering that the Chief Executive is a job that, aside from requiring all of the office-holder's time, also demands undivided attention. [*Soliven v. Makasiar*, 167 SCRA 393 (1988)]. Otherwise, the time and substance of the chief executive will be spent on wrangling litigation, disrespect upon this person will be generated, and distrust in the government will soon follow. [*Forbes v. Chouco Tiaco*, 16 Phil. 534 (1910)]. Third, on grounds of public policy, it was recognized that the gains from discouraging official excesses might be more than offset by the losses from diminished zeal [Agabin, op. cit., at 121.]. Without immunity, the president would be disinclined to exercise decision-making functions in a manner that might detrimentally affect an individual or group of individuals. [See H. Schechter, *Immunity of Presidential Aides from Criminal Prosecution*, 57 Geo. Wash. L Rev. 779 (1989)].

106. 62 Phil. L. J. 113 (1987).

107. See Bulletin Today, August 16, 1984, p. 1; December 18, 1984, p. 7.

108. Records of the Constitutional Commission of 1986, Vol. II, Records, p. 423, July 29, 1986.

109. *Supra* at 47.

110. Records of Constitutional Commission, Vol. II, July 28, 1986, p. 355.

111. 145 SCRA 160 (1986).

112. 128 SCRA 324 (1984).

113. In Re: Raul Gonzalez, 160 SCRA 771 (1988); *Cuenco v. Fernan*, 158 SCRA 29 (1988); and *Jarque v. Desierto*, A.C. No. 4509, 250 SCRA xi-xiv (1995).

114. *Wallace v. Board of Education*, 280 Ala. 635, 197 So 2d 428 (1967).

115. 418 US 683, 94 S. Ct. 3090, 41 L ed 1039 (1974).

116. 457 US 731, 73 L ed. 349, 102 S Ct. 2690 (1982).

117. 520 U.S. 681 (1997).

118. *See* section 1, Art. XI of the 1987 Constitution.

119. *See* section 27, Art. II of the 1987 Constitution.

120. *See* section 1, Art. XI of the 1987 Constitution.

121. *See* section 15, Art. XI of the 1987 Constitution.

122. *See* section 4, Art. XI of the 1987 Constitution.

123. *See* section 13 (1), Art. XI of the 1987 Constitution.

124. *See* section 14, Art. XI of the 1987 Constitution.

125. *See* Brandwood, Notes: "You Say 'Fair Trial' and I say 'Free Press:' British and American Approaches to Protecting Defendants' Rights in High Profile Trials," NYU Law Rev., Vol. 75, No. 5, pp. 1412-1451 (November 2000).

126. *Id.*, p. 1417.

127. *See* e.g., *Martelino, et al. v. Alejandro, et al*, 32 SCRA 106 (1970); *People v. Teehankee*, 249 SCRA 54 (1995).

128. 249 SCRA 54 (1995).

129. 287 SCRA 581 at pp. 596-597 (1998).

130. 247 SCRA 652 (1995).

131. Extensive publicity did not result in the conviction of well known personalities E.g., OJ Simpson, John Mitchell, William Kennedy Smith and Imelda Marcos.

132. Memorandum, p. 25; *Rollo*, GR Nos. 146710-15, Vol. III, p. 647.

133. Memorandum, pp. 29-30; *Rollo*, GR Nos. 146710-15, Vol. III, pp. 572-573.

134. *See* section 4, Rule 112.

135. *Estes v. Texas*, 381 US 532, 540 (1965).

Concurring Opinion

VITUG, J.:

This nation has a great and rich history authored by its people. The EDSA Revolution of 2001 could have been one innocuous phenomenon buried in the pages of our history but for its critical dimensions. Now, EDSA 2 would be far from being just another event in our annals. To this day, it is asked — Is Mr. Joseph Ejercito Estrada still the President of the Republic of the Philippines?

To retort, one is to trace the events that led to the denouement of the incumbency of Mr. Joseph Ejercito Estrada. Mr. Estrada, herein petitioner, was elected to office by not less than 10 million Filipinos in the elections of May 1998, served for well over two years until 20 January 2001. Formally impeached by the Lower House of Representatives for cases of Graft and Corruption, Bribery, Betrayal of Public Trust and Culpable Violation of the Constitution, he was tried by the Senate. The Impeachment Tribunal was tasked to decide on the fate of Mr. Estrada — if convicted, he would be removed from office and face prosecution with the regular courts or, if acquitted, he would remain in office. An evidence, however, presented by the prosecution tagged as the "second envelope" would have it differently. The denial by the impeachment court of the pleas to have the dreaded envelop opened promptly put the trial into a halt. Within hours after the controversial Senate decision, an angered people trooped once again to the site of the previous uprising in 1986 that toppled the 20 year rule of former President Ferdinand E. Marcos — EDSA. Arriving in trickles, the motley gathering swelled to an estimated million on the fourth day, with several hundreds more nearing Mendiola reportedly poised to storm Malacañang.

In the morning of 20 January 2001, the people waited for Erap to step down and to heed the call for him to resign. At this time, Estrada was a picture of a man, elected into the Presidency, but beleaguered by solitude-empty of the support by the military and the police, abandoned by most of his cabinet members, and with hardly any firm succor from constituents. And despite the alleged popularity that brought him to power, mass sentiment now appeared to be for his immediate ouster.

With this capsule, the constitutional successor of Estrada in the person of Gloria Macapagal-Arroyo, then incumbent Vice-President, took the cue and requested the Chief Justice to administer her oath-taking. In a letter, sent through "fax" at about half past eleven o'clock in the morning of 20 January 2001, read:

> "The undersigned respectfully informs this Honorable Court that Joseph Ejercito Estrada is permanently incapable of performing the duties of his office resulting in his permanent disability to govern and serve his unexpired term. Almost all of his cabinet members have resigned and the Philippine National Police have withdrawn their support for Joseph Ejercito Estrada. Civil Society has likewise refused to recognize him as President.
>
> "In view of this, I am assuming the position of the President of the Republic of the Philippines. Accordingly, I would like to take my oath as President of the Republic before the Honorable Chief Justice Hilario G. Davide. Jr., today, 20 January 200, 12:00 noon at Edsa Shrine, Quezon City, Metro Manila.
>
> "May I have the honor to invite the members of the Honorable Court to attend the oath-taking."

The tribunal, aware of the grave national crisis which had the marks of yet

intensifying into possible catastrophic proportions, agreed to honor the request. Theretofore, the Court, cognizant that it had to keep its doors open, had to help assure that the judicial process was seen to be functioning. As the hours passed, however, the extremely volatile situation was getting more precarious by the minute, and the combustible ingredients were all but ready to ignite. The country was faced with a phenomenon the phenomenon of a people, who, in the exercise of a sovereignty perhaps too limitless to be explicitly contained and constrained by the limited words and phrases of the Constitution, directly sought to remove their president from office. On that morning of the 20th of January, the high tribunal was confronted with a dilemma — should it choose a literal and narrow view of the constitution, invoke the rule of strict law, and exercise its characteristic reticence? Or was it propitious for it to itself take a hand? The first was fraught with danger and evidently too risky to accept. The second could very well help avert imminent bloodshed. Given the realities, the Court was left hardly with choice. Paradoxically, the first option would almost certainly imperil the Constitution, the second could save it. The confirmatory resolution was issued following the en banc session of the Court on 22 January 2001; it read:

> "A.M. No. 01-1-05-SC — In re: Request of Vice-President Gloria Macapagal-Arroyo to take her Oath of Office as President of the Philippines before the Chief Justice — Acting on the urgent request of vice President Gloria Macapagal-Arroyo to be sworn in as President of the Republic of the Philippines, addressed to the Chief Justice and confirmed letter to the Court, dated January 20, 2001, which request was treated as an administrative matter, the Court resolved unanimously to CONFIRM the authority given by the twelve (12) members of the Court then present to the Chief justice on January 20, 2001 to administer the oath of office to Vice President Gloria Macapagal-Arroyo as President of the Philippines, at noon of January 20, 2001.
>
> "This resolution is without prejudice to the disposition of any justiciable case which may be filed by a proper party."

At high noon on the 20th of January 2001, Gloria Macapagal-Arroyo was sworn in as the 14th President of the Republic of the Philippines. EDSA, once again, had its momentous role in yet another "bloodless revolution." The Court could not have remained placid amidst the worsening situation at the time. It could not in conscience allow the high-strung emotions and passions of EDSA to reach the gates of Malacañang. The military and police defections created stigma that could not be left unguarded by a vacuum in the Presidency. The danger was simply overwhelming. The extra-ordinariness of the reality called for an extra-ordinary solution. The Court has chosen to prevent rather than cure an enigma incapable of being recoiled.

The alarming social unrest ceased as the emergence of a new leadership so unfolded. The promise of healing the battered nation engulfed the spirit but it was not to last. Questions were raised on the legitimacy of Mme. Macapagal-Arroyo's assumption to office. Mr. Estrada would insist that he was still President and that Mme. Macapagal-Arroyo took over only in an acting capacity.

So it is argued, Mr. Estrada remains to be the President because under the 1987 Constitution, the Vice President may assume the Presidency only in its explicitly prescribed instances; to wit, *firstly*, in case of death, permanent disability, removal from office, or resignation of the President, [1] *secondly*, when the President transmits to the President of the Senate and the Speaker of the House of Representatives his written declaration that he is unable to discharge the powers and office, [2] and *thirdly*, when a

majority of all the Members of the Cabinet transmit to the President and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, [3] the latter two grounds being culled as the "disability clauses."

Mr. Estrada believes that he cannot be considered to have relinquished his office for none of the above situations have occurred. The conditions for constitutional succession have not been met. He states that he has merely been "temporarily incapacitated" to discharge his duties, and he invokes his letters to both Chambers of the Congress consistent with Section 11 of Article VII of the 1987 Constitution. The twin letters, dated 20 January 2001, to the two houses read:

> "By virtue of the provisions of Section 11, Article VII of the Constitution, I am hereby transmitting this declaration that I am unable to exercise the powers and duties of my office. By operation of law and the Constitution, the Vice-President shall be acting President."

Truly, the grounds raised in the petition are as dubitable as the petitioner's real motive in filing the case.

The pressing issue must now catapult to its end.

Resignation is an act of giving up or the act of an officer by which he renounces his office indefinitely. In order to constitute a complete and operative act of resignation, the officer or employee must show a clear intention to relinquish or surrender his position accompanied by an act of relinquishment. Resignation implies an expression of an incumbent in some form, express or implied, of the intention to surrender, renounce, relinquish the office. [4]

Mr. Estrada imports that he did not resign from the Presidency because the word "resignation" has not once been embodied in his letters or said in his statements. I am unable to oblige. The contemporary acts of Estrada during those four critical days of January are evident of his intention to relinquish his office. Scarcity of words may not easily cloak reality and hide true intentions. Crippled to discharge his duties, the embattled President acceded to have negotiations conducted for a smooth transition of power. The belated proposals of the President to have the Impeachment Court allow the opening of the controversial envelope and to postpone his resignation until 24 January 2001 were both rejected. On the morning of 20 January 2001, the President sent to Congress the following letter —

> "By virtue of the provisions of Section 11, Article VII, of the Constitution, I am hereby transmitting this declaration that I am unable to exercise the powers and duties of my office. By operation of law and the Constitution, the vice-president shall be the acting president."

Receipt of the letter by the Speaker of the lower house was placed at around eight o'clock in the morning but the Senate President was said to have received a copy only on the evening of that day. Nor this Court turn a blind eye to the paralyzing events which left petitioner to helplessness and inutility in office — not so much by the confluence of events that forced him to step down from the seat of power in a poignant and teary farewell as the recognition of the will of the governed to whom he owed allegiance. In his "valedictory message," he wrote:

> "At twelve o' clock noon today, Vice-President Gloria Macapagal-Arroyo took her oath as President of the Republic of the Philippines. While along with

many other legal minds of our country, I have strong and serious doubts about the legality and constitutionality of her proclamation as President, I do not wish to be a factor that will prevent the restoration of unity and order in our civil society.

"It is for this reason that I now leave Malacañang Palace, the seat of the presidency of this country, for the sake of peace and in order to begin the healing process of our nation. I leave the palace of our people with gratitude for the opportunities given to me for service to our people. I will not shirk from any future challenges that may come ahead in the same service of our country.

"I call on all my supporters and followers to join me in the promotion of a constructive national spirit of reconciliation and solidarity.

"May the Almighty bless our country and our beloved people.

"MABUHAY!

Abandonment of office is a species of resignation, [5] and it connotes the giving up of the office although not attended by the formalities normally observed in resignation. Abandonment may be effected by a positive act or can be the result of an omission, whether deliberate or not. [6]

Mr. Joseph Estrada invokes "temporary incapacity" under Section 11, Article VII of the Constitution. This assertion is difficult to sustain since the temporary incapacity contemplated clearly envisions those that are personal, either by physical or mental in nature, [7] and innate to the individual. If it were otherwise, when then would the disability last? Would it be when the confluent causes which have brought about that disability are completely set in reverse? Surely, the idea fails to register well to the simple mind.

Neither can it be implied that the takeover has installed a revolutionary government. A revolutionary government is one which has taken the seat of power by force or in defiance of the legal processes. Within the political context, a revolution is a complete overthrow of the established government. [8] In its delimited concept, it is characterized often, [9] *albeit* not always, [10] by violence as a means and specifiable range of goals as ends. In contrast, EDSA 2 did not envision radical changes. The government structure has remained intact. Succession to the Presidency has been by the duly-elected Vice-President of the Republic. The military and the police, down the line, have felt to be so acting in obedience to their mandate as the protector of the people.

Any revolution, whether it is violent or not, involves a radical change. Huntington sees revolution as being "a rapid, fundamental and violent domestic change in the dominant values and myths of society in its political institution, social structure, leadership, government activity and policies." [11] The distinguished A.J. Milne makes a differentiation between *constitutional political action* and a *revolutionary political action*. A constitutional political action, according to him, is a political action within a legal framework and rests upon a moral commitment to uphold the authority of law. A revolutionary political action, on the other hand, acknowledges no such moral commitment. The latter is directed towards overthrowing the existing legal order and replacing it with something else. [12] And what, one might ask, is the "legal order" referred to? It is an authoritative code of a polity comprising enacted rules, along with those in the Constitution [13] and concerns itself with structures rather than personalities in the establishment. Accordingly, structure would refer to the different branches of the government and personalities would be the power-holders. If determination would be made whether a specific legal order is intact or not, what can be vital is not the change

in the personalities but a change in the structure.

The ascension of Mme. Macapagal-Arroyo to the presidency has resulted neither in the rupture nor in the abrogation of the legal order. The constitutionally-established government structures, embracing various offices under the executive branch, of the judiciary, of the legislature, of the constitutional commissions and still other entities, including the Armed Forces of the Philippines and the Philippine National Police and local governments as well, have all remained intact and functioning.

An insistence that the events in January 2001 transgressed the letter of the Constitution is to ignore the basic tenet of constitutionalism and to fictionalize the clearly preponderant facts.

More than just an eloquent piece of frozen document, the Constitution should be deemed to be a living testament and memorial of the sovereign will of the people from whom all government authority emanates. Certainly, this fundamental statement is not without meaning. Nourished by time, it grows and copes with the changing milieu. The framers of the Constitution could not have anticipated all conditions that might arise in the aftermath of events. A constitution does not deal in details, but enunciates the general tenets that are intended to apply to all facts that may come about but which can be brought within its directions. [14] Behind its conciseness is its inclusiveness and its apertures overridingly lie, not fragmented but integrated and encompassing, its spirit and its intent. The Constitution cannot be permitted to deteriorate into just a petrified code of legal maxims and hand-tied to its restrictive letters and wording, rather than be the pulsating law that it is. Designed to be an enduring instrument, its interpretation is not to be confined to the conditions and outlook which prevail at the time of its adoption; [15] instead, it must be given flexibility to bring it in accord with the vicissitudes of changing and advancing affairs of men. [16] Technicalities and play of words cannot frustrate the inevitable because there is an immense difference between *legalism and justice*. If only to secure our democracy and to keep the social order — technicalities must give way. It has been said that the real essence of justice does not emanate from quibblings over patchwork legal technicality but proceeds from the spirits gut consciousness of the dynamic role as a brick in the ultimate development of social edifice. [17] Anything else defeats the spirit and intent of the Constitution for which it is formulated and reduces its mandate to irrelevance and obscurity.

All told, the installation of Mme. Macapagal-Arroyo perhaps came close to, but not quite, the revolutionary government that we know. The new government, now undoubtedly in effective control of the entire country, domestically and internationally recognized to be legitimate, acknowledging a previous pronouncement of the court, [18] is a *de jure* government both in fact and in law. The basic structures, the principles, the directions, the intent and the spirit of the 1987 Constitution have been saved and preserved. Inevitably, Mme. Gloria Macapagal-Arroyo is the President, not merely an Acting President, of the Republic of the Philippines.

A reminder of an elder to the youth. After two non-violent civilian uprising within just a short span of years between them, it might be said that popular mass action is fast becoming an institutionalized enterprise. Should the streets now be the venue for the exercise of popular democracy? Where does one draw the line between the rule of law and the rule of the mob, or between "People Power" and "Anarchy?" If, as the sole justification for its being, the basis of the Arroyo presidency lies alone on those who were at EDSA, then it does rest on loose and shifting sands and might tragically open a Pandora's box more potent than the malaise it seeks to address. Conventional wisdom

dictates the indispensable need for great sobriety and extreme circumspection on our part. In this kind of arena, let us be assured that we are not overcome by senseless adventurism and opportunism. The country must not grow oblivious to the innate perils of people power for no bond can be stretched far too much to its breaking point. To abuse is to destroy that which we may hold dear.

Footnotes

1. Section 8, Article VII, 1887 Constitution

2. Section 11, 1st paragraph, Article VII, 1887 Constitution.

3. *Ibid.*, 2nd paragraph.

4. *Ortiz vs. COMELEC*, 162 SCRA 812.

5. *Sangguniang Bayan ng San Andres vs. Court of Appeals*, G.R. No. 11883, 16 January 1998.

6. Cruz, Carlos L., The Law on Public Officers, p. 174, 1997 Edition.

7. "Mr. SUAREZ. . . .

"May we now go to Section 11, page 5. This refers to the Presidents written declaration of inability to discharge the powers and duties of the Office of the President. Can this written declaration to be done for and in behalf of the President if, for example, the President is in no position to sign his name, like he suffers an accident and both his arms get to be amputated?

"Mr. REGALADO. We have not had a situation like that even in the jurisdiction from which we borrowed this provision, but we feel that in the remote situation that the Commissioner has cited in that the President cannot make a written declaration, I suppose an alternative would be considered wherein he can so expressly manifest in an authentic manner what should be contained in a written declaration. . . .

"Mr. SUAREZ. . . . I am thinking in terms of what happened to President Wilson. Really, the physical disability of the gentleman was never made clear to the historians. But suppose a situation will happen in our country where the President may suffer coma and gets to be unconscious, which is practically a total inability to discharge the powers and duties of his office, how can he submit a written declaration of inability to perform the duties and functions of his office?

xxx xxx xxx

"FR. BERNAS. Precisely. The second paragraph is to take care of the Wilson situation.

"Mr. SUAREZ. I see.

"Mr. REGALADO. The Wilson situation was in 1917. Precisely, this twenty-fifth Amendment to the American Constitution as adopted on February 10, 1967 prevent a recurrence of such situation. Besides, it was not only the Wilson matter. As I have already mentioned here, they have had situations in the United states, including those of President Garfield, President Wilson, President Roosevelt and President Eisenhower." (11 RECORDS, pp. 421-423)

8. Gitlow vs. Kiely, 44 F. 2d as cited in 46 CJS 1086.

9. *Ibid*.

10. *Ibid*.

11. Zacorin, Theories of Revolution in Contemporary Historiography, 88 POLITICAL SCIENCE QUARTERLY.

12. Milne, Philosophy and Political Action, The Case of Civil Rights, 21 Political Studies, 453, 463 (1973).

13. Fernandez, LAW and POLITY: Towards a Systems Concept of Legal validity, 46 Philippine Law Journal, 390-391 (1971)

14. 16 American Jurisprudence 2d.

15. State ex rel Columbus vs. Keterrer, 127 Ohio St 483, 189 NE 252.

16. *John Hancock Mut. Life Ins. Co. v. Ford Motors Co*, 322 Mich 209, 39 NW 2d 763.

17. Battles in the Supreme Court by Justice Artemio Panganiban, pp. 103-104.

18. *Lawyers' League for a Better Philippines vs. President Corazon C. Aquino, et al*, G.R. No. 73748, May 22, 1986.

Concurring Opinion

MENDOZA, J.:

In issue in these cases is the legitimacy of the presidency of respondent Gloria Macapagal-Arroyo. In G.R. No. 146738, the petition for *quo warranto* seeks a declaration that petitioner Joseph Ejercito Estrada is the lawful President of the Philippines and that respondent Gloria Macapagal-Arroyo is merely acting President on account of the former's temporary disability. On the other hand, in G.R. Nos. 146710-15, the petition seeks to prohibit respondent Ombudsman Aniano Desierto from investigating charges of plunder, bribery, malversation of public funds, and graft and corruption against petitioner Estrada on the theory that, being still President, he is immune from suit.

In both cases, a preliminary question is raised by respondents whether the legitimacy of Gloria Macapagal-Arroyo's presidency is a justiciable controversy. Respondent Gloria Macapagal-Arroyo contends that the matter is not justiciable because of "the virtual impossibility of undoing what has been done, namely, the transfer of constitutional power to Gloria Macapagal-Arroyo as a result of the events starting from the exposé of Ilocos Sur Governor Luis 'Chavit' Singson in October 2000." [1] In support of this contention, respondent cites the following statements of this Court concerning the Aquino government which it is alleged applies to her administration:

> . . . [T]he legitimacy of the Aquino government is not a justiciable matter. It belongs to the realm of politics where only the people of the Philippines are the judge. And the people have made the judgment; they have accepted the government of President Corazon C. Aquino which is in effective control of the

entire country so that it is not merely a *de facto* government but is in fact and law a *de jure* government. Moreover, the community of nations has recognized the legitimacy of the present government. All the eleven members of this Court, as reorganized, have sworn to uphold the fundamental law of the Republic under her government. [2]

From the natural law point of view, the right of revolution has been defined as "an inherent right of a people to cast out their rulers, change their policy or effect radical reforms in their system of government or institutions by force or a general uprising when the legal and constitutional methods of making such change have proved inadequate or are so obstructed as to be unavailable." It has been said that "the locus of positive law-making power lies with the people of the state" and from there is derived "the right of the people to abolish, to reform and to alter any existing form of government without regard to the existing constitution." [3]

But the Aquino government was a revolutionary government which was established following the overthrow of the 1973 Constitution. The legitimacy of a revolutionary government cannot be the subject of judicial review. If a court decides the question at all *qua* court, it must necessarily affirm the existence and authority of such government under which it is exercising judicial power. [4] As Melville Weston long ago put it, "the men who were judges under the old regime and the men who are called to be judges under the new have each to decide as individuals what they are to do; and it may be that they choose at grave peril with the factional outcome still uncertain. [5] This is what the Court did in *Javellana v. Executive Secretary* [6] when it held that the question of validity of the 1973 Constitution was political and affirmed that it was itself part of the new government. As the Court said in *Occena v. COMELEC* [7] and *Mitra v. COMELEC*, [8] "[P]etitioners have come to the wrong forum. We sit as a Court duty-bound to uphold and apply that Constitution. . . . It is much too late in the day to deny the force and applicability of the 1973 Constitution."

In contrast, these cases do not involve the legitimacy of a government. They only involve the legitimacy of the presidency of respondent Gloria Macapagal-Arroyo, and the claim of respondents is precisely that Macapagal-Arroyo's ascension to the presidency was in accordance with the Constitution. [9]

Indeed, if the government of respondent Gloria Macapagal-Arroyo is a revolutionary one, all talk about the fact that it was brought about by succession due to resignation or permanent disability of petitioner Joseph Ejercito Estrada is useless. All that respondents have to show is that in the contest for power Macapagal-Arroyo's government is the successful one and is now accepted by the people and recognized by the community of nations.

But that is not the case here. There was no revolution such as that which took place in February 1986. There was no overthrow of the existing legal order and its replacement by a new one, no nullification of the Constitution.

What is involved in these cases is similar to what happened in 1949 in *Avelino v. Cuenco*. [10] In that case, in order to prevent Senator Lorenzo M. Tañada from airing charges against Senate President Jose Avelino, the latter refused to recognize him, as a result of which tumult broke out in the Senate gallery, as if by pre-arrangement, as the Court noted, and Avelino suddenly adjourned the session and, followed by six senators, walked out of the session hall. The remaining senators then declared the position of

President of the Senate vacant and elected Senator Mariano Jesus Cuenco acting president. The question was whether respondent Cuenco had been validly elected acting president of the Senate, considering that there were only 12 senators (out of 24) present, one senator (Sen. Confesor) being abroad while another one (Sen. Sotto) was ill in the hospital.

Although in the beginning this Court refused to take cognizance of a petition for *quo warranto* brought to determine the rightful president of the Senate, among other things, in view of the political nature of the controversy, involving as it did an internal affair of a coequal branch of the government, in the end this Court decided to intervene because of the national crisis which developed as a result of the unresolved question of presidency of the Senate. The situation justifying judicial intervention was described, thus:

> We can take judicial notice that legislative work has been at a standstill; the normal and ordinary functioning of the Senate has been hampered by the non-attendance to sessions of about one-half of the members; warrants of arrest have been issued, openly defied, and remained unexecuted like mere scraps of paper, notwithstanding the fact that the persons to be arrested are prominent persons with well-known addresses and residences and have been in daily contact with news reporters and photographers. Farce and mockery have been interspersed with actions and movements provoking conflicts which invite bloodshed.
>
> . . . Indeed there is no denying that the situation, as obtaining in the upper chamber of Congress, is highly explosive. It had echoed in the House of Representatives. It has already involved the President of the Philippines. The situation has created a veritable national crisis, and it is apparent that solution cannot be expected from any quarter other than this Supreme Court, upon which the hopes of the people for an effective settlement are pinned. [11]

In voting to assume jurisdiction, Chief Justice Paras wrote: "[T]his Court has no other alternative but to meet the challenge of the situation which demands the utmost of judicial temper and judicial statesmanship. As herein before stated, the present crisis in the Senate is one that imperatively calls for the intervention of this Court." [12] Questions raised concerning respondent Gloria Macapagal-Arroyo's presidency similarly justify, in my view, judicial intervention in these cases.

Nor is our power to fashion appropriate remedies in these cases in doubt. Respondents contend that there is nothing else that can be done about the assumption into office of respondent Gloria Macapagal-Arroyo. What has been done cannot be undone. It is like toothpaste, we are, told, which, once squeezed out of the tube, cannot be put back.

Both literally and figuratively, the argument is untenable. The toothpaste can be put back into the tube. Literally, it can be put back by opening the bottom of the tube — that is how toothpaste is put in tubes at manufacture in the first place. Metaphorically, the toothpaste can also be put back. In G.R. No. 146738, a writ can be issued ordering respondent Gloria Macapagal-Arroyo to vacate the Office of the President so that petitioner Joseph E. Estrada can be reinstated should the judgment in these cases be in his favor. Whether such writ will be obeyed will be a test of our commitment to the rule of law. In election cases, people accept the decisions of courts even if they be against the results as proclaimed. Recognition given by foreign governments to the presidency poses no problem. So, as far as the political question argument of

respondents is anchored on the difficulty or impossibility of devising effective judicial remedies, this defense should not bar inquiry into the legitimacy of the Macapagal-Arroyo administration.

This brings me to the main issue, whether respondent Gloria Macapagal-Arroyo's ascension to the Presidency was in accordance with the Constitution. Art. VII, §8 provides in pertinent parts:

> In case of death, permanent disability, removal from office, or resignation of the President, the Vice-President shall become the President to serve the unexpired term. In case of death, permanent disability, removal from office, or resignation of both the President and Vice-President, the President of the Senate or, in case of his inability, the Speaker of the House of Representatives, shall then act as President until the President or Vice-President shall have been elected and qualified.

The events that led to the departure of petitioner Joseph E. Estrada from office are well known and need not be recounted in great detail here. They began in October 2000 when allegations of wrongdoings involving bribe-taking, illegal gambling *(jueteng),* and other forms of corruption were made against petitioner before the Blue Ribbon Committee of the Senate. On November 13, 2000, petitioner was impeached by the House of Representatives and, on December 7, impeachment proceedings were begun in the Senate during which more serious allegations of graft and corruption against petitioner were made and were only stopped on January 16, 2001 when 11 senators, sympathetic to petitioner, succeeded in suppressing damaging evidence against petitioner. As a result, the impeachment trial was thrown into an uproar as the entire prosecution panel walked out and Senate President Aquilino Pimentel resigned after casting his vote against petitioner.

The events, as seen through the eyes of foreign correspondents, are vividly recounted in the following excerpts from the *Far Eastern Economic Review* and *Time Magazine* quoted in the Memorandum of petitioner in G.R. Nos. 146710-15, thus:

> 11. The decision immediately sent hundreds of Filipinos out into the streets, triggering rallies that swelled into a massive four-day demonstration. But while anger was apparent among the middle classes, Estrada, a master of the common touch, still retained largely passive support among the poorest Filipinos. Citing that mandate and exploiting the letter of the Constitution, which stipulates that a written resignation be presented, he refused to step down even after all of the armed forces, the police and most of his cabinet withdrew their support for him. [FAR EASTERN ECONOMIC REVIEW, "More Power to The Powerful", *id.*, at p. 18].
>
> 12. When an entire night passed without Estrada's resignation, tens of thousands of frustrated protesters marched on Malacañang to demand that the president leave office. An air force fighter jet and four military helicopters buzzed the palace to remind the president that had lost the reins of power. [FAR EASTERN ECONOMIC REVIEW, *supra*, *ibid.*]
>
> 13. While the television cameras were focused on the rallies — and the commentators became lost in reveries about People Power revisited — behind-the-scenes negotiations had been going on non-stop between military factions loyal to Estrada and those who advocated a quick coup to depose the President. Chief of Staff Reyes and Defense Secretary

Mercado had made their fateful call to Estrada after luncheon attended by all the top commanders. The officers agreed that renouncing Estrada was the best course, in part because some commanders were urging more drastic resolution. If the military did not come to a consensus, there loomed the possibility of factional fighting or, worse, civil war. [TIME, "People Power Redux", *id* at p. 18]

14. It finally took a controversial Supreme Court declaration that the presidency was effectively vacant to persuade Estrada to pack up and move out to his family home in Manila — still refusing to sign a letter of resignation and insisting that he was the legal president FAR EASTERN ECONOMIC REVIEW, "More Power to the Powerful", *supra, ibid.*]. Petitioner then sent two letters, one to the Senate President and the other to the Speaker of the House, indicating that he was unable to perform the duties of his Office. [13]

To recall these events is to note the moral framework in which petitioner's fall from power took place. Petitioner's counsel claimed petitioner was forced out of Malacañang Palace, seat of the Presidency, because petitioner was "threatened with mayhem." [14] What, the President of the Philippines, who under the Constitution is the commander-in-chief of all the armed forces, threatened with mayhem? This can only happen because he had lost his moral authority as the elected President.

Indeed, the people power movement did not just happen at the call of some ambitious politicians, military men, businessmen and/or prelates. It came about because the people, rightly or wrongly, believed the allegations of graft and corruption made by Luis "Chavit" Singson, Emma Lim, Edgardo Espiritu, and other witnesses against petitioner. Their testimonies during the impeachment trial were all televised and heard by millions of people throughout the length and breadth of this archipelago. As a result, petitioner found himself on January 19, 2001 deserted as most of his cabinet members resigned, members of the Armed Forces of the Philippines and the Philippine National Police withdrew their support of the President, while civil society announced its loss of trust and confidence in him. Public office is a public trust. Petitioner lost the public's trust and as a consequence remained President only in name. Having lost the command of the armed forces and the national police, he found himself vulnerable to threats of mayhem.

This is the confession of one who is beaten. After all, the permanent disability referred to in the Constitution can be physical, mental, or moral, rendering the President unable to exercise the powers and functions of his office. As his close adviser wrote in his diary of the final hours of petitioner's presidency:

> The President says: "Pagod na pagod na ako. Ayoko na masyado nang masakit. Pagod na ako sa red tape, bureaucracy, intriga. (I am very tired. I don't want any more of this — it's too painful. I'm tired of the red tape, the bureaucracy, the intrigue.) [15]

Angara himself shared this view of petitioner's inability. He wrote in his diary:

> "Let us be realistic," I counter. "The President does not have the capability to organize a counter-attack. He does not have the AFP or the Philippine National Police on his side. *He is not only in a corner — he is also down.*" [16]

This is the clearest proof that petitioner was totally and permanently disabled at least as of 11 P.M. of Friday, January 19, 2001. Hence the negotiations for the transfer

of power to the respondent Vice-President Gloria Macapagal-Arroyo. It belies petitioner's claim that he was not permanently disabled but only temporarily unable to discharge the powers and duties of his office and therefore can only be temporarily replaced by respondent Gloria Macapagal-Arroyo under Art. VII, §11.

From this judgment that petitioner became permanently disabled because he had lost the public's trust, I except extravagant claims of the right of the people to change their government. While Art. II, §1 of the Constitution says that "sovereignty resides in the people and all government authority emanates from them," it also says that "the Philippines is a democratic and republican state." This means that ours is a representative democracy — as distinguished from a direct democracy — in which the sovereign will of the people is expressed through the ballot, whether in an election, referendum, initiative, recall (in the case of local officials) or plebiscite. Any exercise of the powers of sovereignty in any other way is unconstitutional.

Indeed, the right to revolt cannot be recognized as a constitutional principle. A constitution to provide for the right of the people to revolt will carry with it the seeds of its own destruction. Rather, the right to revolt is affirmed as a natural right. Even then, it must be exercised only for weighty and serious reasons. As the Declaration of Independence of July 4, 1776 of the American Congress states:

> We hold these Truths to be self-evident, that all Men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty, and the Pursuit of Happiness — That to secure these Rights, Governments are instituted among Men, deriving their just Powers from the Consent of the Governed, that whenever any Form of Government becomes destructive of these Ends, it is the Right of the People to alter or to abolish it, and to institute new Government, laying its Foundation on such Principles, and organizing its Powers in such Form, as to them shall seem most likely to effect their Safety and Happiness. *Prudence, indeed, will dictate that Governments long established should not be changed for light and transient Causes; and accordingly all Experience hath shewn, that Mankind are more disposed to suffer, while Evils are sufferable, than to right themselves by abolishing the Forms to which they are accustomed. But when a long Train of Abuses and Usurpations, pursuing invariably the same Object, evinces a Design to reduce them under absolute Despotism, it is their Right, it is their Duty, to throw off such Government, and to provide new Guards for their future Security*. [17]

Here, as I have already indicated, what took place at EDSA from January 16 to 20, 2001 was not a revolution but the peaceful expression of popular will. The operative fact which enabled Vice-President Gloria Macapagal-Arroyo to assume the presidency was the fact that there was a crisis, nay a vacuum, in the executive leadership which made the government rife for seizure by lawless elements. The presidency was up for grabs, and it was imperative that the rule of succession in the Constitution be enforced.

But who is to declare the President's permanent disability, petitioner asks? The answer was given by petitioner himself when he said that he was already tired and wanted no more of popular demonstrations and rallies against him; when he and his advisers negotiated with respondent Gloria Macapagal-Arroyo's advisers for a transition of powers from him to her; when petitioner's own Executive Secretary declared that petitioner was not only in a corner but was down.

Nor is it correct for petitioner to say that the present situation is similar to our situation during the period (from 1941 to 1943) of our occupation by the Japanese, when we had two presidents, namely, Manuel L. Quezon and Jose P. Laurel. This is turning somersault with history. The Philippines had two presidents at that time for the simple reason that there were then two governments — the *de facto* government established by Japan as belligerent occupant, of which Laurel was president, and the de jure Commonwealth Government in exile of President Manuel L. Quezon. That a belligerent occupant has a right to establish a government in enemy territory is a recognized principle of international law. [18] But today we have only one government, and it is the one set up in the 1987 Constitution. Hence, there can only be one President.

Having reached the conclusion that petitioner Joseph E. Estrada is no longer President of the Philippines, I find no need to discuss his claim of immunity from suit. I believe in the canon of adjudication that the Court should not formulate a rule of constitutional law broader than is required by the precise facts to which it is applied.

The only question left for resolution is whether there was massive prejudicial publicity attending the investigation by the Ombudsman of the criminal charges against petitioner. The test in this jurisdiction is whether there has been "actual, not merely possible, prejudice" [19] caused to petitioner as a result of publicity. There has been no proof of this, and so I think this claim should simply be dismissed.

For the foregoing reasons, I vote to dismiss the petitions in these cases.

Footnotes

1. Joint Memorandum of the Secretary of Justice and Solicitor General, p. 15.
2. *Lawyers League for a Better Philippines v. President Corazon C. Aquino*, G.R. No 73746, May 22, 1986.
3. Letter of Associate Justice Reynato S. Puno, 210 SCRA 589, 597 (1992).
4. *Luther v. Borden*, 7 How. 1 (1848).
5. Political Questions, 38 HARV. L REV. 296, 305 (1925).
6. 50 SCRA 30 (1973).
7. 104 SCRA 1 (1981).
8. 104 SCRA 59 (1981).
9. Joint Memorandum of the Secretary of Justice and Solicitor General, p. 2.
10. 83 Phil. 17 (1949).
11. 83 Phil. at 76 (Perfecto, J., concurring).
12. *Id.* at 25-26 (concurring and dissenting).
13. Memorandum for Petitioner, G.R. Nos. 146710-15, pp. 5-6.
14. Petition, G.R. No. 146738, p. 13.
15. Edgardo Angara, Erap's Final Hours Told, Philippine Daily Inquirer, p. A6, February 6,

2001.

16. *Id*. (emphasis added).

17. Emphasis added.

18. *Co Kim Cham v. Valdez*, 75 Phil. 113 (1945); *Peralta v. Director of Prisons*, 75 Phil. 285 (1945); *Laurel v. Misa*, 77 Phil. 856 (1947).

19. *See Martelino v. Alejandro*, 32 SCRA 106 (1970).

Concurring Opinion

BELLOSILLO, J.:

I FULLY CONCUR with the opinion written for the majority by Mr. Justice Puno in the usual penetrating and scholarly flourish of his pen, characteristically his. Allow me nonetheless to express my views on whether a vacancy occurred in the Office of the President to justify and validate Mme. Gloria Macapagal-Arroyo's ascendancy to the Presidency, if only to emphasize and reinforce what he advocates in his *ponencia*. I shall confine myself to this issue upon which the legitimacy of the present dispensation hinges and to which all others moor their bearings.

Section 8, Art. VII, of the Constitution which deals with vacancies occurring in the Office of the President is limited to four (4) specified situations, to wit: (a) death of the incumbent, (b) his permanent disability, (c) removal, or (d) resignation from office [1] thus —

> SECTION 8. In case of *death, permanent disability, removal from office*, or resignation of the President, the Vice-President shall become the President to serve the unexpired term. In case of death, permanent disability, removal from office, or resignation of both the President and Vice-President, the President of the Senate or, in case of his inability, the Speaker of the House of Representatives, shall then act as President until the President or Vice-President shall have been elected and qualified.
>
> The Congress shall, by law, provide who shall serve as President in case of death, permanent disability, or resignation of the Acting President. He shall serve until the President or the Vice-President shall have been elected and qualified, and be subject to the same restrictions of powers and disqualifications as the Acting President (*emphasis supplied*).

This constitutional provision is intended precisely to forestall a *hiatus* in the exercise of executive powers due to unavoidable or unpredictable human factors that may supervene during the tenure of office of the incumbent.

It is admitted that the term *permanent disability* used in Sec. 8, Art. VII, is a fair example of words which have one meaning that is commonly accepted, and a materially different or modified one in its legal sense. It is axiomatic that the primary task in constitutional construction is to ascertain and assure the realization of the purpose of the framers, hence of the people in adopting the Constitution. The language of the

Charter should perforce be construed in a manner that promotes its objectives more effectively. A strained construction which impairs its own meaning and efficiency to meet the responsibilities brought about by the changing times and conditions of society should not be adopted. *Constitutions are designed to meet not only the vagaries of contemporary events but should be interpreted to cover even future and unknown circumstances*. It must *withstand the assaults of bigots and infidels at the same time bend with the refreshing winds of change necessitated by unfolding events*. [2] As it is oft repeated, *constitutional provisions are interpreted by the spirit which vivifies and not by the letter which killeth*. 3

Thus, under the pertinent constitutional provision governing the rules of succession by the Vice-President in the event of *permanent disability* of the President, the term must be reasonably construed, and as so construed means *all kinds of incapacities* which render the President perpetually powerless to discharge the functions and prerogatives of the office. This is what appears to have been in the minds of the framers of the 1987 Constitution. As borne by the deliberations of the Constitutional Commission [4] —

> MR. SUAREZ. Thank you Madam President. In the proposed draft for Section 5 of the Honorable de los Reyes, he employed the phrase "BECOMES PERMANENTLY DISABLED," I suppose this would refer to a physical disability, or does it also include mental disability?
>
> MR. DE LOS REYES. *It includes all kinds of disabilities which will disable or incapacitate the President or Vice-President from the performance of his duties* (emphasis supplied).

Clearly, *permanent disability* in the sense it is conceptualized in the Constitution cannot realistically be given a restrictive and impractical interpretation as referring only to *physical* or *mental* incapacity, but must likewise cover other forms of incapacities of a permanent nature, e.g., functional disability. Indeed, the end sought to be achieved in inserting Sec. 8 of Art. VII in the Constitution must not be rendered illusory by a strained interpretation fraught with constitutionally calamitous or absurd consequences. The present scenario confronting the Republic had been wisely foreseen and anticipated by the framers, for after all, the 1987 Constitution was sired by People Power I.

It may be asked: Was petitioner rendered permanently disabled as President by the circumstances obtaining at the height of People Power II as to justify the ascension of Mme. Gloria Macapagal-Arroyo as the 14th *de jure* President of the Republic? So he was; hence, the assumption of respondent as President.

I view petitioner's *permanent disability* from two (2) different perspectives: objectively and subjectively. From the objective approach, the following circumstances rendered inutile petitioner's administration and powers as Chief Executive: (a) the refusal of a huge sector of civil society to accept and obey him as President; (b) the mass resignation of key cabinet officials thereby incapacitating him from performing his duties to execute the laws of the land and promote the general welfare, (c) the withdrawal of support of the entire armed forces and the national police thus permanently paralyzing him from discharging his task of defending the Constitution, maintaining peace and order and protecting the whole Filipino people; (d) the spontaneous acknowledgment by both Houses of Congress — the Senate represented by the Senate President, and the House of Representatives by the Speaker — of Mme.

Gloria Macapagal-Arroyo as the constitutional successor to the Presidency; and, (e) the manifestation of support by the Papal Nuncio, *doyen* of the diplomatic corps, and the recognition and acceptance by world governments of the Presidency of Mme. Gloria Macapagal-Arroyo. By virtue hereof, petitioner has lost all moral and legal authority to lead. Without the people, an effectively functioning cabinet, the military and the police, with no recognition from Congress and the international community, petitioner had absolutely no support from and control of the bureaucracy from within and from without. In fact he had no more functioning government to speak of. It is in this context that petitioner was deemed to be absolutely unable to exercise or discharge the powers, duties and prerogatives of the Presidency.

The irremediable nature of his disability cannot be doubted. It is well-nigh inconceivable that there would be a reversal of all the factors that disabled him. There was nothing in the withdrawal of support from the various sectors which would suggest that it was merely temporary or conditional. On the contrary, the withdrawal of support was categorical and unqualified. Certainly, the factual milieu of this case makes it all the more remote and very unlikely that those who have withdrawn their support from petitioner would suddenly have a change of heart, intone *mea culpa*, and shift back their allegiance to him once again.

From the subjective approach, I am likewise convinced that petitioner's contemporaneous acts and statements during and after the critical episode are eloquent proofs of his implied — but nevertheless unequivocal — acknowledgment of the permanence of his disability.

First. His *Press Statement* released shortly before leaving Malacañang Palace on 20 January 2001, which sounded more like a mournful farewell, did not intimate any contingency or condition, nor make any allusion, nary a hint, that he was holding on to the office, or that he intended to reclaim the Presidency at some determinable future time —

> At twelve o'clock noon today, Vice President Gloria Macapagal-Arroyo took her oath as President of the Republic of the Philippines. While along with many other legal minds of our country, I have strong and serious doubts about the legality and constitutionality of her Proclamation as President, I do not wish to be a factor that will prevent the restoration of unity and order in our civil society.
>
> It is for this reason that I now leave Malacañang Palace, the seat of the presidency of this country, for the sake of peace and in order to begin the healing process of our nation. I leave the palace of our people with gratitude for the opportunities given to me for service to our people. I will not shirk from any future challenges that may come ahead in the same service of our country.
>
> I call on all my supporters and followers to join me in the promotion of a constructive national spirit of reconciliation and solidarity.
>
> May the Almighty bless our country and our beloved people.
>
> MABUHAY!

This was confirmed by counsel for the petitioner during the oral arguments on 15 February 2001 the pertinent portions of the proceedings, textually quoted in part, follow:

SENIOR ASSOCIATE JUSTICE BELLOSILLO:

Mr. Counsel, after the petitioner stepped down from Malacañang could he

have continued to perform his functions as president if he wanted to?

DEAN AGABIN:

No. Your Honor, in the light of the circumstances, it was not possible for him to perform his functions as President

SENIOR ASSOCIATE JUSTICE BELLOSILLO:

In other words, from then on up to now, he has not performed the functions of the Office of the President of the Republic of the Philippines?

DEAN AGABIN: No, your Honor.

SENIOR ASSOCIATE JUSTICE BELLOSILLO:

Now, in that press statement explaining why he left Malacañang, can you see from there any reservation that he was going to reclaim this position afterwards?

DEAN AGABIN:

I do not see any reservation, your Honor, and in fact as we stated in our petition, the petitioner will have to consider several important factors before he ever mulls such a proposition because the petitioner has always considered the national interest, the avoidance of bloodshed, the need for unity among our fractious people and other political factors before he would ever think of doing that. 5

Plainly, the foregoing dialogue that transpired in the session of the Court unmistakably evinced the intention of petitioner to vacate his office for good, as he did, without any reservation to return thereto.

Second. In the same *Press Statement* petitioner stated a fact: *Vice President Gloria Macapagal-Arroyo took her oath as President of the Republic of the Philippines*, thus belying his subsequent disclaimer that respondent merely assumed the office in an acting capacity.

Verily, the status of Mme. Gloria Macapagal-Arroyo's assumption into office is evident from her oath —

I, GLORIA MACAPAGAL-ARROYO, Vice President of the Philippines, do solemnly swear that I will faithfully and conscientiously fulfill my duties *as President of the Philippines*, preserve and defend Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the Nation.

So help me God (emphasis supplied).

Moreover, no less than counsel for the petitioner admitted this fact, as shown by this exchange —

SENIOR ASSOCIATE JUSTICE BELLOSILLO:

No, but what did she say, was she taking her oath as Acting President or as President of the Philippines in that oath that she took?

ATTY. SAGUISAG:

My recollection is only as President without qualifier; I could be mistaken on

this, but that is my recollection at the moment, Your Honor. 6

Petitioner's admissions in his *Press Statement,* which were made instinctively at the denouement of the political drama, indubitably show that he recognized the vacancy and the legitimate ascent of Mme. Gloria Macapagal-Arroyo to the Presidency.

Third. There were serious efforts at negotiation on the eve of petitioner's ouster between his few remaining allies headed by Executive Secretary Edgardo J. Angara and certain emissaries from the camp of Mme. Gloria Macapagal-Arroyo concerning the peaceful transition of power — a spectacle reminiscent of a vanquished general suing for peace and relinquishing his fort to the victor. Unfortunately, petitioner's terms of capitulation were not met with approval by respondent's camp as time was already of the essence to avert a serious confrontation between the agitated pro-Erap hold-outs and the sizzling anti-Erap radicals.

Fourth. Petitioner's appeal to the nation for sobriety amidst the deafening clamor for his resignation as well as his ill-advised call for a snap election where he assured all and sundry that he would not run for re election, further betrayed serious doubts on his mandate as President — obviously nothing more than a clever ruse to retard the inevitable, not to say, legally damned as it was devoid of constitutional anchor.

Fifth. Petitioner was quoted as saying, "*Pagod na pagod na ako*. *Ayoko na — masyado nang masakit*," a sigh of submission no doubt. He repeatedly announced his lack of interest in reclaiming the Presidency. These are hardly the utterances and deportment of a president in control of his constituents and the affairs of the state, thus affirming my conviction that petitioner's permanent disability, *facto et lege*, created a constitutional vacancy in the Presidency.

A final word. In every critical undertaking by the state the most powerful agent for success or failure is the Constitution, for from this, as from a fountainhead, all conceptions and plans of action not only emanate but also attain their consummation. It is the Constitution, as the repository of the sovereign will, that charts the future of our fledging Republic. The measure of our adherence thereto is the ultimate gauge of our insignificance or greatness.

As I observed with keen interest and grave concern the events as they unfolded in EDSA, the rumblings of a forthcoming tempest crossed my mind, only to realize in the end that my fears were completely unfounded. The Filipinos once again have displayed political maturity and grace in the midst of a historic crisis, and despite strong temptations of the moment to effect change extra-legally, they have reaffirmed their commitment to the majesty of the Constitution and the rule of law.

I vote to dismiss the petitions.

Footnotes

1. Cruz, Philippine Political Law, 1995 Ed., p. 180.

2. See *Tañada v. Angara*, G.R. No. 118295, 2 May 1997, 272 SCRA 18, 64.

3. See *Cayetano v. Monsod*, G.R.. No. 100113, 3 September 1991, 201 SCRA 210, 228.

4. Record of the Constitutional Commission, Vol. II, p. 446.

5. TSN, 15 February 2001, pp. 63-64.

6. TSN, 15 February 2001, p. 36.

Concurring Opinion

KAPUNAN, J.:

KAPUNAN, *J* .:

The core issue presented to the Court is whether respondent Gloria Macapagal-Arroyo assumed the Presidency within the parameters of the Constitution.

The modes by which the Vice President succeeds the President are set forth in Article VII, Section 8 of the Constitution: (1) death, (2) permanent disability, (3) removal from office, and (4) resignation of the President. [1]

Petitioner did not die. He did not suffer from permanent disability He was not removed from office because the impeachment proceedings against him were aborted through no fault of his.

Did petitioner resign as President? The *ponencia* conceded that petitioner did not write any formal letter of resignation before he left Malacañang Palace in the afternoon of January 20, 2001, after the oath-taking of respondent Arroyo However, the ponencia held that petitioner resigned from the Presidency as "determined from his acts and omissions before, during and after January 20, 2001 or by the totality of prior contemporary and posterior facts and circumstances bearing a material relevance on the issue." [2] Among the "facts and circumstances" pointed to were the so-called "people power" referring to the crowd that gathered at EDSA and Makati City, the withdrawal of support by the military and police forces from petitioner, the resignation of some officials of the government, the incidents revealed in the diary of Executive Secretary Edgardo Angara, serialized in the *Philippine Daily Inquirer*, [3] and the press statement issued by petitioner at 2:30 p.m. of January 20, 2001 before he and his family left Malacañang Palace.

None of the foregoing "facts and circumstances" clearly and unmistakably indicate that petitioner resigned as President.

To constitute a complete operative resignation of a public official, there must be: (1) the intention to relinquish part of the term and (2) an act of relinquishment. [4] Intent connotes voluntariness and freedom of choice. With the impassioned crowd marching towards Malacañang Palace and with the military and police no longer obeying petitioner, he was reduced to abject powerlessness. In this sense, he was virtually forced out of the Presidency. If intention to resign is a requirement *sine qua non* for a valid resignation, then forced resignation or involuntary resignation, or resignation under duress, is no resignation at all.

The use of "people power" and the withdrawal of military support mainly brought about petitioner's ouster from power. This completely negates any pretentions that he voluntarily stepped down from the presidency. More importantly, people power is not one of the modes prescribed by the Constitution to create a vacancy in the office of the President.

The doctrine that sovereignty resides in the people is without doubt enshrined in

our Constitution. This does not mean, however, that all forms of direct action by the people in matters affecting government are sanctioned thereunder. To begin with, the concept of "people power" is vague and ambiguous. It is incapable of exact definition. What number would suffice for a mass action by irate citizens to be considered as a valid exercise of "people power?" What factors should be considered to determine whether such mass action is representative of the sovereign will? In what instances would "people power" be justified? There are no judicial standards to address these questions. To be sure, the people have the right to assemble and to petition the government for redress of their grievances. But this right does not go to the extent of directly acting to remove the President from office by means outside the framework of the Constitution.

It must be underscored that the Constitution is "the written instrument agreed upon by the people . . . as the absolute rule of action and decision for all departments and officers of the government . . . and in opposition to which any act or rule of any department or officer of the government, or even of the people themselves, will be altogether void." [5] In other words, the Constitution ensures the primacy of the Rule of Law in the governance of the affairs of the State.

The Constitution prescribes that the sovereign power of the people is to be expressed principally in the processes of election, referendum and plebiscite. [6] Thus, specifically, the provisions in Article XVII of the Constitution on Amendments or Revisions have been described as the "constitution of sovereignty" because they define the constitutional meaning of "sovereignty of the people." [7] As explained by Fr. Joaquin G. Bernas, a well-respected constitutionalist and member of the 1986 Constitutional Commission:

> What is this "sovereign structure" on which the new would be built? It is the amendatory and revision process originally sealed with the approval of the sovereign people. The process prescribed in a constitution is called the "constitution of sovereignty," distinguishing it from the "constitution of liberty" (the Bill of Rights). The amendatory and revision provisions are called the "constitution of sovereignty" because it is through these provisions that the sovereign people have allowed the expression of their sovereign will through this constitution to be canalized. And through this provision new changes are linked to the original expression of the will of the founders of the Constitution.
>
> In other words, the amendatory provisions are called a "constitution of sovereignty" because they define the constitutional meaning of "sovereignty of the people." Popular sovereignty, as embodied in the Philippine Constitution, is not extreme popular sovereignty. [8]

When the people overwhelmingly ratified the Constitution on February 2, 1987, [9] they committed themselves to abide by its provisions. In effect, the Filipino people agreed to express their sovereignty within the parameters defined by the Constitution. As an American professor on legal philosophy put it: "By ratifying the constitution that included an explicit amendment process, the sovereign people committed themselves to following the rule of law, even when they wished to make changes in the basic system of government." [10] This is the essence of constitutionalism:

> Through constitutionalism we placed limits on both our political institutions and ourselves, hoping that democracies, historically always turbulent, chaotic, and even despotic, might now become restrained, principled, thoughtful and just.

> So we bound ourselves over to a law that we made and promised to keep. And though a government of laws did not displace governance by men, it did mean that now men, democratic men, would try to live by their word. [11]

Adherence to the Constitution at all times is the cornerstone of a free and democratic society. In *Ex Parte Milligan*, [12] it was succinctly said:

> The Constitution . . . is a law for rulers and people, equally in war and peace, and covers with the shield of its protection all classes of men, at all times, and under all circumstances. No doctrine involving more pernicious consequences was ever invented by the wit of man than that any of its provisions can be suspended during any of the great exigencies of government. [13]

Thus, when the people, acting in their sovereign capacity, desire to effect fundamental changes in government, such must be done through the legitimate modes which they previously agreed upon, meaning within the framework of the Constitution. To sanction any deviation from the modes prescribed by the Constitution to remove the President from office, albeit seemingly the public clamor, is to court instability and anarchy. In the words of Cooley:

> . . . Although by their constitutions the people have delegated the exercise of sovereign powers to the several departments, they have not thereby divested themselves of the sovereignty. They retain in their own hands, so far as they have thought it needful to do so, a power to control the governments they create, and the three departments are responsible to and subject to be ordered, directed, changed or abolished by them. But this control and direction must be exercised in the legitimate mode previously agreed upon. The voice of the people, acting in their sovereign capacity, can be of legal force only when expressed at the times and under the conditions which they themselves have prescribed and pointed out by the Constitution, or which, consistently with the Constitution, have been prescribed and pointed out for them by statute; and if by any portion of the people, however large, an attempt should be made to interfere with the regular working of the agencies of government at any other time or in any other mode than as allowed by existing law, either constitutional or statutory, it would be revolutionary in character, and must be resisted and repressed by the officers who, for the time being, represent legitimate government. [14]

For the same reason, the withdrawal of support by the military and police forces cannot legitimately set the stage for the removal of the head of state. The fundamental law expressly mandates the supremacy of civilian authority over the military at all times, [15] and installs the President, the highest-ranking civilian government official, as commander-in-chief of the Armed Forces of the Philippines. [16] The designation by the Constitution of the armed forces as protector of the people and of the State requires it to staunchly uphold the rule of law. Such role does not authorize the armed forces to determine, by itself, when it should cease to recognize the authority of the commander-in-chief simply because it believes that the latter no longer has the full support of the people.

Reliance on the Angara Diary to establish the "intent" or "state of mind" of petitioner is improper since the contents thereof have not been duly established as facts and are therefore hearsay. In any case, the circumstances under which petitioner allegedly manifested his intention to resign were, at best, equivocal.

The "circumstances" mentioned in the diary refer to, among others, the incidents when petitioner allegedly expressed his worry about the swelling crowd at EDSA; when he proposed a snap election where he would not be a candidate; when he made no objection to the suggestion for a graceful and dignified exit, but would have a 5-day grace period to stay in the palace; when he entered into negotiations for a peaceful and orderly transfer of power and to guarantee the safety of petitioner and his family; and when he uttered the following: "*Pagod na pagod na ako. Ayoko na, masyado nang masakit. Pagod na ako sa* red tape, bureaucracy, *intriga* (I am very tired. I don't want any more of this — it's too painful. I'm tired of the red tape, the bureaucracy, the intrigue.) I want to clear my name, then I will go." The negotiations were, however, aborted, according to the Angara diary, by respondent Arroyo's oath-taking.

The incidents described in the Angara diary tell a story of desperation, duress and helplessness surrounding petitioner, arguing eloquently against the idea of intent and voluntariness on his part to leave the Presidency. In any event, since the conditions proposed for his resignation were not met, the act did not come to reality.

The hasty departure of petitioner from Malacañang Palace and the issuance of the subject press statement cannot likewise conclusively establish the "intent to relinquish" the Presidency. Indeed, it can be argued just as persuasively that petitioner merely left the Palace to avert violence but that he did not intend to give up his office. He said that he was leaving Malacañang, the seat of the presidency. He did not say he was resigning. Note that in his press statement, petitioner expressed "strong and serious doubts about the legality and constitutionality" of Ms. Arroyo's proclamation as President. There are other factual considerations that negate petitioner's "intent to relinquish" permanently, particularly, petitioner's letters, both dated 20 January 2001, to the Senate President [17] and the Speaker of the House of Representatives [18] informing them that he was unable to exercise the powers and duties of his office and recognizing Ms. Arroyo as the Acting President.

There is no doubt that the crimes imputed to petitioner are egregiously wrongful. But he was not afforded the opportunity to present his side either in the hearings before the Senate Blue Ribbon Committee or before the Impeachment Court. What were extant were the massive and relentless mass actions portraying his "guilt," whipping up passions into unimaginable frenzy. The senators sitting as judges in the impeachment court were elected by the Filipino people because of the latter's trust and confidence in them to discharge their constitutional duties They ought to have continued with the trial until its conclusion, in fidelity to the Constitutional processes, thus preserving the quietude, stability and order of society.

However, I share my colleagues' opinion that respondent Arroyo is now the recognized legitimate President. It is an irreversible fact. She has taken her oath as President before the Chief Justice on 20 January 2001. Since then Ms. Arroyo has continuously discharged the functions of the President. Her assumption into power and subsequent exercise of the powers and performance of the duties attaching to the said position have been acquiesced in by the Legislative Branch of government. [19]

The Senate President and the Speaker of the House of Representatives executed a Joint Statement of Support and Recognition of respondent Arroyo as petitioner's constitutional successor. [20] The Senate [21] and the House of Representatives [22] passed their respective Resolutions expressing support to the Arroyo administration. Congress confirmed the nomination of Senator Teofisto Guingona, Jr. as the new Vice-President, thus acknowledging respondent Arroyo's

assumption to the presidency in a permanent capacity. [23] The Impeachment Court has resolved that its existence has ceased by becoming *functus officio* in view of petitioner's relinquishment of the presidency. [24]

As President, Ms. Arroyo has gained control over all the executive departments, bureaus and officers and is the acknowledged Commander-in-Chief of all the armed forces of the Philippines. [25] Her administration has, likewise, been recognized by numerous members of the international community of nations, including Japan, Australia, Canada, Spain, the United States, the ASEAN countries, as well as 90 major political parties in Europe, North America, Asia and Africa. [26] More importantly, a substantial number of Filipinos have already acquiesced in her leadership. [27] The Court can do no less.

I vote to DISMISS the petitions.

Footnotes

1. Article VII, Section 8 of the Constitution states:

   In case of death, permanent disability, removal from office, or resignation of the President, the Vice-President shall become the President to serve the unexpired term. In case of death, permanent disability, removal from office, or resignation of both the President and Vice President, the President of the Senate, or, in case of his inability, the Speaker of the House of Representatives, shall then act as President until the President or Vice-President shall have been elected and qualified.

2. Decision, p. 26.

3. Erap's Final Hours, *Philippine Daily Inquirer*, February 4-6, 2001.

4. F. MECHEM, A TREATISE ON THE LAW OF PUBLIC OFFICES AND OFFICERS, Sec. 411, pp. 262-263 (1890).

5. T.M. COOLEY, III CONSTITUTIONAL LIMITATIONS (1868). Also cited in BERNAS, THE 1987 CONSTITUTION OF THE REPUBLIC OF THE PHILIPPINES: A COMMENTARY (1996), pp. xxxiv-xxxv.

6. II RECORD OF THE CONSTITUTIONAL COMMISSION 316.

   FR. BERNAS. While I agree with the lofty objectives of the amendment proposed, I am afraid that the effect of the proposed amendment is, in fact, to weaken the provisions on impeachment. The amendment speaks of massive election frauds. We have a very general principle in the Constitution which says that sovereignty resides in the people and all government authority emanates from them. And the sovereignty of the people is principally expressed in the election process and in the referendum plebiscite processes. (Emphasis mine)

7. See BERNAS, Note 5, at 1163.

8. *Id.*, at 1162-1163.

9. *De Leon vs. Esguerra*, 153 SCRA 602 (1987).

10. A. ALTMAN, ARGUING ABOUT LAW (2001), p. 94.

11. *Id.* citing J. AGRESTO, THE SUPREME COURT AND CONSTITUTIONAL

DEMOCRACY (1984).

12. 4 Wall. 2, 18 L. Ed. 281 [1866].

13. *Id*., cited in the Dissenting opinion of Gutierrez, *J*. in *Marcos vs*. *Manglapus*, 177 SCRA 668, 702 (1989).

14. T.M. COOLEY, II CONSTITUTIONAL LIMITATIONS, 8TH ED. (1927), p. 1349.

15. Article II, Section 3, CONSTITUTION.

16. Article VII, Section 18, CONSTITUTION.

17. Annex "A," Petition, G.R.. Nos. 146710-15.

18. Annex "A-1" to Petition, G.R.. Nos. 146710-15.

19. The Solicitor General and the Secretary of Justice point out that respondent Arroyo has signed the Solid Waste Management Bill into law and nominated then Senator Teofisto Guingona, Jr. as Vice-President, which nomination has been confirmed by both Houses of Congress. The Legislature has likewise called on the COMELEC to call a Special election simultaneously with the general elections in May to fill the vacancy left by Vice-President Guingona (Joint Comment of the Solicitor General and the Department of Justice, p. 22, Annexes "E" and "F").

20. Annex "1," Memorandum of Respondents De Vera and Funa.

21. Comment of Respondents De Vera and Funa, Annex "2."

22. House Resolution No. 176, 11th Congress, 3rd Session (2001).

23. Senate Resolution No. 82, 11th Congress, 3rd Session (2001) and House Resolution No. 178, 11th Congress, 3rd Session (2001).

24. Senate Resolution No. 83, 11th Congress, 3rd Session (2001).

25. Memorandum of Respondent Ombudsman Aniano Desierto, pp. 12-13.

26. Joint Comment of the Solicitor General and the Secretary of Justice, p. 7.

27. The ABS-CBN/SWS Survey conducted from 2-7 February 2001 showed that 61% of Filipinos nationwide accepted the legitimacy of the Arroyo administration.

Concurring Opinion

PARDO, J.:

PARDO, *J* .:

I concur in the result. In the above cases, the Court decided to dismiss the petitions. Consequently, the Court effectively declared that on January 20, 2001, petitioner has resigned the office of the president. [1] Thus, then Vice President Gloria Macapagal-Arroyo succeeded to the presidency in a manner prescribed in the Constitution. [2] She is a *de jure* president. [3] I only wish to add that petitioner was "constrained to resign" the office. It has been held that "resignation is defined as the act

of giving up or the act of an officer by which he declines his office and renounces the further right to use it. To constitute a complete and operative act of resignation, the officer or employee must show a clear intention to relinquish or surrender his position accompanied by the act of relinquishment." [4] Petitioner's act of "resignation", however, was done in light of the reality that he could no longer exercise the powers and duties of the presidency [5] and left "the seat of the presidency of this county, for the sake of peace and in order to begin the healing process of our nation." [6]

Hence, the succession to the presidency of then Vice-President Gloria Macapagal-Arroyo on January 20, 2001, was in accordance with the Constitutional prescription. [7] She was the Vice-President of the Philippines elected in the May 11, 1998 elections, proclaimed by Congress on the basis of the certificates of canvass duly certified by the Board of Canvassers of each province, city and district showing that she garnered 12,667,252 million votes. [8]

On another tack, I reserved my vote on the question of petitioner's claim of immunity from suit.

In G. R Nos. 146710-15, the petition was to enjoin respondent Ombudsman from conducting the preliminary investigation of six (6) criminal complaints filed with his office against petitioner. In fact, however, the cases were still at preliminary investigation stage.

To be sure, the Court likewise decided to dismiss the petition. It is settled jurisprudence that prohibition or injunction, preliminary or final, generally will not lie to restrain or enjoin a criminal prosecution, with well-defined exceptions, such as a sham preliminary investigation hastily conducted. [9] This Court consistently has refrained from interfering with the exercise of the powers of the Ombudsman and respects the independence inherent in the Ombudsman who, beholden to no one, acts as the champion of the people and the preserver of the integrity of the public service. [10]

The Court ruled that "there is not enough evidence to warrant this Court to enjoin the preliminary investigation of the petitioner by the respondent Ombudsman. Petitioner needs to offer more than hostile headlines to discharge his burden of proof." [11] Let me, however, emphasize the warning given so beautifully written by the *ponente* in his epilogue, thus:

> "A word of caution to the "hooting throng." The cases against the petitioner will now acquire a different dimension and then move to a new stage — the Office of the Ombudsman. Predictably, the call from the majority for instant justice will hit a higher decibel while the gnashing of teeth of the minority will be more threatening. It is the sacred duty of the respondent Ombudsman to balance the right of the State to prosecute the guilty and the right of an accused to a fair investigation and trial which has been categorized as the "most fundamental of all freedoms." To be sure, the duty of a prosecutor is more to do justice and less to prosecute. His is the obligation to insure that the preliminary investigation of the petitioner shall have a circus-free atmosphere. He has to provide the restraint against what Lord Bryce calls "the impatient vehemence of the majority." Rights in a democracy are not decided by the mob whose judgment is dictated by rage and not by reason. Nor are rights necessarily resolved by the power of number for in a democracy, the dogmatism of the majority is not and should never be the definition of the rule of law. If democracy has proved to the best form of government, it is because it has respected the right of the minority to convince the majority that it is wrong. Tolerance of multiformity of thoughts, however offensive they may be, is the key to man's progress from the cave to civilization.

Let us not throw away that key just to pander to some people's prejudice." [12]

Finally, I must expressly state that the Court's ruling dismissing the petitions shall not be construed as foreclosing the issue of immunity and other presidential prerogatives as may be raised at the proper time, in a proper justiciable controversy. In short, petitioner still "has the remedy" of assailing any adverse rulings of the Ombudsman "before the proper court" with the facts and the evidence adduced before it.

I also join Justice Vicente V. Mendoza in his separate concurring opinion.

Footnotes

1. *Ponencia*, pp. 29-32.
2. Article VII, Section 8, 1987 Constitution.
3. 14th President of the Republic.
4. *Ortiz v. Commission on Elections*, 162 SCRA 812, 819 [1988].
5. Statement from President Joseph Ejercito Estrada, *ponencia*, p. 10.
6. *Ibid*.
7. *Supra*, Note 2.
8. Per Resolution of Both Houses No. 1, adopted on May 29, 1998.
9. *Brocka v. Enrile*, 192 SCRA 183, 188-190 [1990]; *Paderanga v. Drilon*, 196 SCRA 86, 90 [1991];
10. *Espinosa v. Ombudsman*, G. R No. 135775, October 19, 2000.
11. *Ponencia*, pp. 63-64.
12. *Ponencia*, pp. 65-66.

Concurring Opinion

YNARES-SANTIAGO, J.:

YNARES-SANTIAGO, *J* .:

In the resolution of these consolidated petitions, the majority opinion defined the issues, foremost among which is whether there exists a justiciable controversy warranting the exercise by this Court of its power of judicial review.

I concur with the majority that the present petitions do not pose a political question. Indeed, the resolution of the more substantive issues therein merely entail an interpretation of the constitutional principles of freedom of speech and the right to assemble. Moreover, the cases call for the application of the provision that:

> The Philippines is a democratic and republican State. Sovereignty resides in the people and all government authority emanates from them. [1]

However, I am constrained to write this separate concurring opinion to express my concern and disquietude regarding the use of "people power" to create a vacancy in the presidency.

At the outset, I must stress that there is no specific provision in the Constitution which sanctions "people power," of the type used at EDSA, as a legitimate means of ousting a public official, let alone the President of the Republic. The framers of the Constitution have wisely provided for the mechanisms of elections, constitutional amendments, and impeachment as valid modes of transferring power from one administration to the other. Thus, in the event the removal of an incumbent President or any government official from his office becomes necessary, the remedy is to make use of these constitutional methods and work within the system. To disregard these constitutionally prescribed processes as nugatory and useless instead of making them effectual is to admit that we lack constitutional maturity.

It cannot be overlooked that this Court's legitimation through sufferance of the change of administration may have the effect of encouraging People Power Three, People Power Four, and People Power ad infinitum . It will promote the use of force and mob coercion by activist groups expert in propaganda warfare to intimidate government officials to resolve national problems only in the way the group wants them to be settled. Even now, this Court is threatened with the use of mob action if it does not immediately proclaim respondent Arroyo as a permanent and *de jure* President, brought to power through constitutionally valid methods and constitutional succession. Totally baseless charges of bribery in incredibly fantastic amounts are being spread by malicious and irresponsible rumormongers.

People power to pressure Cabinet members, Congress, government officials and even this Court is becoming a habit. It should not be stamped with legitimacy by this Court.

When is the use of People Power valid and constitutional? When is its use lawless? It bears stressing that never in the entire history of our country's legal system has mob action or the forcible method to seize power been constitutionally sanctioned, starting all the way from the Instructions of President McKinley to the Second Philippine Commission dated April 7, 1900 up to the 1987 Constitution. Surely, the Court cannot recognize "people power" as a substitute for elections. Respondents are emphatic that there was no revolution. However, nothing in the Constitution can define whatever they may call the action of the multitude gathered at EDSA.

I agree with the majority opinion that rallies or street demonstrations are avenues for the expression of ideas and grievances, and that they provide a check against abuse and inefficiency. But in the removal of erring public servants, the processes of the Constitution and the law must be followed. This Court should never validate the action of a mob and declare it constitutional. This would, in the long run, leave public officials at the mercy of the clamorous and vociferous throngs.

I wish to emphasize that nothing that has been said in these proceedings can be construed as a declaration that people power may validly interrupt and lawfully abort on-going impeachment proceedings. There is nothing in the Constitution to legitimize the ouster of an incumbent President through means that are unconstitutional or extra-constitutional. The constitutional principle that sovereignty resides in the people refers

to the exercise of sovereign power within the bounds of that same Constitution, not outside or against it.

The term "people power" is an amorphous and indefinable concept. At what stage do people assembled *en masse* become a mob? And when do the actions of a mob, albeit unarmed or well behaved, become people power? The group gathered at EDSA may be called a crowd, a multitude, an assembly or a mob, but the Court has no means of knowing to the point of judicial certainty [2] that the throng gathered at EDSA was truly representative of the sovereign people. There are 75 million Filipinos. Even assuming that there were 2,000,000 people gathered at EDSA, a generous estimate considering the area of the site, that makes up for only two and two-thirds percent (2.67%) of the population.

Revolution, or the threat of revolution, may be an effective way to bring about a change of government, but it is certainly neither legal nor constitutional. To avoid a resort to revolution the Constitution has provisions for the orderly transfer of power from one administration to the other. [3] People Power is not one of them. Its exercise is outside of the Constitution.

Neither can the Court judicially determine that the throng massed at EDSA can be called the "people." When the Constitution uses the term "people" to define whom the Government may serve or protect, [4] or who may enjoy the blessings of democracy, [5] or people's rights which the military must respect, it refers to *everybody living in the Philippines, citizens and aliens alike, regardless of age or status*. When it refers to "people" vested with sovereignty, [6] or those who may be called upon to render service, [7] or those imploring the aid of Divine Providence, [8] or who may initiate amendments to the Constitution, [9] honor the flag, [10] or ratify a change in the country's name, anthem, or seal, [11] the reference is to citizens or, more particularly, enfranchised citizens.

The writing of this opinion is also impelled in part as my personal reaction to intemperate and rash demands that we should discuss the issues raised to us without the benefit of careful deliberation and to decide them with only one certain and guaranteed result.

Media comments that it should take only ten minutes for a rational human brain to decide the constitutional legitimacy of the Arroyo presidency; that the Court should not persist -in stalling or hobbling, otherwise hordes of angry demonstrators will descend on it; that the Court should not digest the crap fed by an honest lawyer gone wrong; and that if the Justices do not behave they will get lynched; [12] may all be dismissed as evanescent and fleeting exercises of journalistic license which turn to something else the following day. However, if these are repeated and paraphrased on television, print, and radio to a largely uncomprehending but receptive public, [13] or even insinuated by otherwise responsible officials in moments of political passion, comments of this nature sow contempt for the constitutional system. They are destructive of the rule of law and the democratic principles upon which the stability of government depends.

The Philippines adheres to the rule of law. The Constitution fixes the parameters for the assumption to the highest office of President and the exercise of its powers. A healthy respect for constitutionalism calls for the interpretation of constitutional provisions according to their established and rational connotations. The situation should conform to the Constitution. The Constitution should not be adjusted and made to conform to the situation.

While I am against the resort to mob rule as a means of introducing change in government, the peculiar circumstances in the case at bar compel me to agree that *respondent Arroyo rightfully assumed the presidency as the constitutionally annointed successor to the office vacated by petitioner. There was at that time an urgent need for the immediate exercise of presidential functions, powers and prerogatives*. The vacancy in the highest office was created when petitioner, succumbing to the overwhelming tumult in the streets as well as the rapidly successive desertions and defections of his cabinet secretaries and military officers, left Malacañang Palace "for the sake of peace and in order to begin the healing process of our nation." [14]

Accordingly, I concur in the result of the majority ruling that both petitions should be DISMISSED.

Footnotes

1. CONSTITUTION, Article II, Section 1.
2. *Javellana v. Executive Secretary*, Opinion of Messrs. Justice Makalintal and Castro, 50 SCRA 30 [1973].
3. CONSTITUTION, Article VII, Sections 7-12; Article XI, Sections 2-3; Article XVII, Sections 1-4.
4. CONSTITUTION, Article II, Section 4.
5. CONSTITUTION, Article II, Section 5.
6. CONSTITUTION, Article II, Section 1.
7. CONSTITUTION, Article II, Section 4,
8. CONSTITUTION, Preamble.
9. CONSTITUTION, Article XVII, Section 2.
10. CONSTITUTION, Article XVI, Section 1.
11. CONSTITUTION, Article XVI, Section 2.
12. Philippine Star. "*Here's The Score*," February 26, 2001, p. 9.
13. People's Tonight, headline story, February 28, 2001.
14. Joint Comment, Annex "A".

Concurring Opinion

SANDOVAL-GUTIERREZ, J.:

SANDOVAL-GUTIERREZ, *J*.:

I concur in the result of the Decision of the Court.

Petitioner Joseph E. Estrada does not ask for restoration to the Office of The President. He does not seek the ouster and exclusion of respondent Gloria Macapagal-Arroyo from the position. He merely prays for a decision declaring that she is holding the presidency only in an acting capacity. He states that he is willing to give up the claimed presidency provided, however, that the termination of his term as President is done in the manner provided by law.

The sought-for judicial intercession is not for petitioner Estrada alone. Respondent Arroyo claims she is the *de jure* President and that petitioner Estrada has *pro tanto* passed into history, ousted and legitimately replaced by her. She asserts that any attempt to revert petitioner to the presidency is an exercise in futility.

However, the vehemence and passion of her comment and the arguments of her counsel during the hearing on the petition leave lingering apprehension on the legal contestability of her claim to the presidency.

I am, therefore, constrained to write this separate opinion to express my views on the basic issue of whether or not petitioner Estrada resigned as President of the Philippines.

The facts which led to the transfer of power, while maneuvered to suit the conclusions desired by either party, are not in serious dispute. It is in their interpretation where both parties are continents apart.

Serious charges were leveled against petitioner Estrada involving culpable violation of the Constitution, bribery, graft and corruption and betrayal of public trust.

The charges, initiated and prosecuted by the House of Representatives, were heard by the Senate, with the Chief Justice as Presiding Officer, in an impeachment trial. The proceedings were covered in their entirety by live television and radio and attracted the widest, most intense, and riveted attention ever given to any TV or radio program. Trial, heated and acrimonious, but at times entertaining, was proceeding as provided in the Constitution when, on January 16, 2001, it was abruptly suspended. The impeachment session was thrown into turmoil when the Senate, by a vote of 11-10, decided against the opening of an envelope which, the prosecution insisted, contained vital evidence supporting the charges but which the defense wanted suppressed being inadmissible and irrelevant. Pandemonium broke out in the impeachment court. The contending parties, the audience, and even the senator-judges gave vent to their respective feelings and emotions.

The event was God-sent to petitioner Estrada's opponents. Earlier, opposition leaders and the hierarchy of the Roman Catholic Church had led street marches and assemblies in key Metro Manila centers demanding his resignation or ouster. Protest actions were staged at the same area in EDSA where the "People Power Revolution" of 1986 was centered.

The withdrawal of support by top defense and military officers, resignations of certain cabinet officers, public defections to the protesters' cause by other key government officials, and an everswelling throng at EDSA followed in swift succession.

The constitutional process of removal is through impeachment. In fact, the proceedings for the impeachment of petitioner Estrada were underway when an incident concerning the opening of an envelope aborted the process. The proceedings were terminated, preventing him from presenting his defenses.

Respondent Arroyo invoked petitioner's resignation as a reason for her to be

sworn in as President. She vigorously asserts that petitioner Estrada acknowledged his permanent disability to govern; and that his statement that he was leaving Malacañang Palace for the sake of peace and the healing process is a confirmation of his resignation.

It is a cardinal principle in Public Officers Law that a resignation must be voluntary and willingly. [1] It must also be express and definite. A resignation even if clear and unequivocal, if made under duress, is voidable and may be repudiated.

There can be no question that-the so-called resignation of petitioner Estrada is not expressed in clear terms. There is no single instance when he stated he was resigning. But the events prior to his departure from Malacañang telecast nationwide constrained him to step down from the Presidency. The sight of thousands of students and left-leaning groups marching towards Malacañang and the presence there of then AFP Chief of Staff Angelo Reyes clearly indicate that petitioner had no option but to leave.

Anybody who watched the events on live television leading to petitioner Estrada's hurried departure in a motor launch away from the hordes marching from EDSA to Malacañang could declare without hesitation that he was faced with imminent danger to his life and family. Even viewers as far as Mindanao in the South or Batanes in the North undoubtedly felt the duress, coercion, and threat of impending violence. Indeed, it is safe to conclude that he was compelled to "resign" or to leave the Presidency.

However, the legality or illegality of petitioner's so called resignation has been laid to rest by the results that have taken place. Respondent Arroyo immediately took her oath as President of the Republic of the Philippines before Chief Justice Hilario G. Davide, Jr. On January 24, 2001, the House of Representatives issued House Resolution No. 175 expressing its full support to her administration. Likewise, twelve members of the Senate signed a Resolution recognizing and expressing support to the new government and of President Arroyo. Moreover, the international community has likewise recognized the legitimacy of her government.

Under the circumstances, this Court has to declare as a fact what in fact exists. Respondent Gloria Macapagal-Arroyo is the *de jure* President of the Republic of the Philippines.

EXTENDED EXPLANATION OF INHIBITION

Footnotes

1. *Gonzales vs. Hernandez*, 112 Phil. 165 (1961).

Dissenting Opinion

PANGANIBAN, J.:

In response to the Petition to Recuse filed by petitioner on February 14, 2001, I announced immediately, prior to the Oral Argument, my voluntary inhibition from these consolidated cases. In my February 15, 2001 letter addressed to the Court *en banc*, I explained that although petitioner had not proven any legal ground for his request, I

was nonetheless voluntarily inhibiting myself for two reasons: (1) to "hold myself above petitioner's reproach and suspicion" and (2) to deprive "him or anyone else [of] any excuse to cast any doubt on the integrity of these proceedings and of the decision that this court may render in these cases of transcendental importance to the nation." I quote that letter in part, as follows:

> "By his request for my recusation, petitioner — I take it — is of the opinion that I should no longer participate further in the oral argument today and in the deliberation and voting that will follow, because I may have prejudged his cause. As I understand it, he believes that he may not be able to convince me to alter my position and vote in his favor or in any other manner that would deviate from my earlier concurrence in the Chief Justice's action.
>
> Though I am ready to hear his arguments and firmly believe that I have an open mind to consider his plea according to my best light and to vote according to my conscience, I nonetheless deem it of highest importance that as a jurist, I must hold myself above petitioner's 'reproach and suspicion.'
>
> "As he himself asserts (see p. 6 of his Petition for Recusation), my voluntary inhibition "cannot be construed as an admission of incapacity to render impartial rulings but merely illustrates the teaching . . . of Section 1, Rule 137" of the Rules of Court.
>
> "To conclude, I am voluntarily inhibiting myself *pro hac vice* not because petitioner has proven any legal ground therefor but because I do not wish to give him or anyone else any excuse to cast any doubt on the integrity of these proceedings and of the decision that this Court may render in these cases of transcendental importance to the nation."

In spite of the foregoing disquisition, my action has been questioned by many people, including several well-meaning friends. Some have even berated me for allegedly shirking from my sworn duty to decide cases without fear or favor. I have therefore decided to write this extended explanation of my inhibition.

Disqualification, Inhibition and

Recusal Differentiated

Section 1 of Rule 137 of the Rules of Court governs the disqualification and the inhibition of judicial officials, including members of the Supreme Court. It provides as follows:

> "SECTION 1. *Disqualification of judges*. — No judge or judicial officer shall sit in any case in which he, or his wife or child, is pecuniarily interested as heir, legatee, creditor or otherwise, or in which he is related to either party within the sixth degree of consanguinity or affinity, or to counsel within the fourth degree, computed according to the rules of the civil law, or in which he has been executor, administrator, guardian, trustee or counsel, or in which he has presided in any inferior court when his ruling or decision is the subject of review, without the written consent of all parties in interest, signed by them and entered upon the record.
>
> "A judge may, in the exercise of his sound discretion, disqualify himself from sitting in a case, for just or valid reasons other than those mentioned above."

The first paragraph of the above-quoted Section governs the legal grounds for compulsory disqualification. To disqualify is "to bar a judge from hearing, a witness from testifying, a juror from sitting, or a lawyer from appearing in a case because of legal objection to the qualifications of the particular individual." [1]

The Code of Judicial Conduct further elaborates the above rule in this manner:

> "Rule 3.12. A judge should take no part in a proceeding where the judge's impartiality might reasonably be questioned. These cases include proceedings where:
>
> (a) The judge has personal bias or prejudice concerning a party, or personal knowledge of disputed evidentiary facts concerning the proceeding;
>
> (b) The judge served as executor, administrator, guardian, trustee or lawyer in the case or matters in controversy, or a former associate of the judge served as counsel during their association, or the judge or lawyer was a material witness therein;
>
> (c) The judge's ruling in a lower court is the subject of review;
>
> (d) The judge is related by consanguinity or affinity to a party litigant within the sixth degree or to counsel within the fourth degree;
>
> (e) The judge knows that the judge's spouse or child has a financial interest, as heir, legatee, creditor, fiduciary, or otherwise, in the subject matter in controversy or in a party to the proceeding, or any other interest that could be substantially affected by the outcome of the proceeding."

A closer look at the construction of the aforequoted provisions reveals their mandatory or compulsory nature. They clearly mandate that "a judge should take no part in a proceeding," in which any of the circumstances enumerated therein is present. Indeed, the Court explicitly stated in *Garcia v. Dela Peña* [2] the first paragraph of Section 1, Rule 137 of the Rules of Court, was compulsory.

The extent of *sitting* or taking part in a case was explained in *Re*: *Inhibition of Judge Rojas*, [3] as follows:

> ". . . According to *Black's Law Dictionary*, to 'sit' in a case means 'to hold court; to do any act of a judicial nature. To hold a session, as of a court, grand jury, legislative body, etc. To be formally organized and proceeding with the transaction of business.' The prohibition is thus not limited to cases in which a judge *hears* the evidence of the parties, but includes as well cases where he *acts* by resolving motions, issuing orders and the like . . .. The purpose of the rule is to prevent not only a conflict of interest but also the appearance of impropriety on the part of the judge. A judge should take no part in a proceeding where his impartiality might reasonably be questioned. He should administer justice impartially and without delay."

Rationalizing the rule, the Court explained:

> "The rule on compulsory disqualification of a judge to hear a case where, as in the instant case, the respondent judge is related to either party within the sixth degree of consanguinity or affinity rests on the salutary principle that no judge should preside in a case in which he is not wholly free, disinterested, impartial and independent. A judge has both the duty of rendering a just decision

and the duty of doing it in a manner completely free from suspicion as to its fairness and as to his integrity. The law conclusively, presumes that a judge cannot objectively or impartially sit in such a case and, for that reason, prohibits him and strikes at his authority to hear and decide it, in the absence of written consent of all parties concerned. The purpose is to preserve the people's faith and confidence in the courts of justice."

The rationale for the rule on the compulsory disqualification of a judge or judicial officer is predicated on the long-standing precept that no judge should preside in a case in which he or she is not wholly independent, disinterested or impartial. Judges should not handle cases in which they might be perceived, rightly or wrongly, to be susceptible to bias and partiality. The rule is aimed at preserving at all times the people's faith and confidence in our courts, which are essential to the effective administration of justice. [4]

Inhibition

While the disqualification of judges based on the specific grounds provided by the Rules of Court and the Code of Judicial Conduct is compulsory, inhibition partakes of voluntariness on their part. It arises from just or valid reasons tending to cast doubt on their proper and impartial disposition of a case. The rule on inhibition is set forth in the second paragraph of Rule 137 of the Rules of Court, which provides:

'A judge may, in the exercise of his sound discretion, disqualify himself from sitting in a case, for just or valid reasons other than those mentioned above.'

Whether judges should inhibit themselves from a case rests on their own "sound discretion." In *Rosello v. Court of Appeals*, [5] how such discretion should be exercised was explained by the Supreme Court in these words:

"As to the issue of disqualification[6] [based on the second paragraph of Section 1, Rule 137 of the Rules of Court], this Court has ruled that to disqualify or not to disqualify is a matter of conscience and is addressed primarily to the sense of fairness and justice of the judge concerned. Thus, the mere filing of an administrative case against respondent [j]udge is not a ground for disqualifying him from hearing the case, for if on every occasion the party apparently aggrieved would be allowed to either stop the proceedings in order to await the final decision on the desired disqualification, or demand the immediate inhibition of the [j]udge on the basis alone of his being so charged, many cases would have to be kept pending or perhaps there would not be enough judges to handle all the cases pending in all the courts. This Court has to be shown acts or conduct of the judge clearly indicative of arbitrariness or prejudice before the latter can be branded the stigma of being biased or partial." [7]

Alleged in *CIR v. CA* [8] were the grounds for the disqualification of an associate justice of the Supreme Court from participating in the case. These alleged grounds were his having served under private respondent's counsel when the latter was the solicitor general, and their having had business relations in connection with the operation of a small restaurant. Even if true, these were not regarded as compulsory bases for his disqualification. Instead, the Court ruled: "It is for him [the jurist] alone, therefore, to determine his qualification." [9] On whether to disqualify him from participating in the case or not, the Court took note of the old doctrine that when a justice of the Court of Appeals or the Supreme Court is challenged, "the magistrate sits with the court and the question is decided by it as a body." [10]

Earlier on, the Court had the occasion to lay down the appropriate guidelines in a

situation where the judge's capacity to try and decide a case fairly and judiciously would come to the fore by way of a challenge from any one of the parties. It ruled as follows: [11]

> 'A judge may not be legally prohibited from sitting in a litigation. But when suggestion is made of record that he might be induced to act in favor of one party or with bias or prejudice against a litigant arising out of circumstances reasonably capable of inciting such a state of mind, he should conduct a careful self-examination. He should exercise his discretion in a way that the people's faith in the courts of justice is not impaired. A salutary norm is that he reflect on the probability that a losing party might nurture at the back of his mind the thought that the judge had unmeritoriously tilted the scales of justice against him. That passion on the part of a judge may be generated because of serious charges of misconduct against him by a suitor or his counsel, is not altogether remote. He is a man, subject to the frailties of other men. He should, therefore, exercise great care and caution before making up his mind to act or withdraw from a suit where that party or counsel is involved. He could in good grace inhibit himself where that case could be heard by another judge and where no appreciable prejudice would be occasioned to others involved therein. On the result of his decisions to sit or not to sit may depend to a great extent the all-important confidence in the impartiality of the judiciary. If after reflection he should resolve to voluntarily desist from sitting in a case where his motives or fairness might be seriously impugned, his action is to be interpreted as giving meaning and substance to the second paragraph of Section 1 Rule 137. He serves the cause of the law who forestalls miscarriage of justice."

In a string of cases, the Supreme Court has said that bias and prejudice, to be considered valid reasons for the voluntary inhibition of judges, must be proved with clear and convincing evidence. Bare allegations of partiality and prejudgment will not suffice. These cannot be presumed, especially if weighed against the sacred obligation of judges whose oaths of office require them to administer justice without respect to person and to do equal right to the poor and the rich. [12]

The Court has also said that, to warrant the judge's inhibition from the case, bias or prejudice must be shown to have stemmed from an extrajudicial source, and that it would result in a disposition on the merits on some basis other than what the judge learned from participating in the case. As long as opinions formed in the course of judicial proceedings are based on the evidence presented and the conduct observed by the judge, they will not prove personal bias or prejudice, even if found later on as erroneous. In addition to palpable error that may be inferred from the decision or the order itself, extrinsic evidence is required to establish bias, bad faith, malice or corrupt purpose. [13]

Hence, the Court exhorted in *Go v. Court of Appeals* [14] that the rule should "not be used cavalierly to suit a litigant's personal designs or to defeat the ends of justice." It deemed as intolerable acts of litigants who, for any conceivable reason, would seek to disqualify a judge for their own purposes under a plea of bias, hostility, or prejudgment. It further held that it did not approve of some litigants' tactic of filing baseless motions for disqualification as a means of delaying the case or of forum-shopping for a more friendly judge. [15]

Moreover, in *Aparicio v. Andal* [16] the Court said:

> "Efforts to attain fair, just and impartial trial and decision, have a natural and alluring appeal. But, we are not licensed to indulge in unjustified

> assumptions, or make a speculative approval [of] this ideal. It ill-behooves this Court to tar and feather a judge as biased or prejudiced, simply because counsel for a party-litigant happens to complain against him. As applied here, respondent judge has not as yet crossed the line that divides partiality and impartiality. He has not thus far stepped to one side of the fulcrum. No act or conduct of his would show arbitrariness or prejudice. Therefore, we are not to assume what respondent judge, not otherwise legally disqualified, will do in a case before him. We have had occasion to rule in a criminal case that a charge made before trial that a party 'will not be given a fair, impartial and just hearing' is 'premature.' Prejudice is not to be presumed. Especially if weighed against a judge's legal obligation under his oath to administer justice without respect to person and to equal right to the poor and the rich.' To disqualify or not to disqualify himself then, as far as respondent judge is concerned, is a matter of conscience."

There is, however, a caveat in the grant of motions to disqualify or inhibit, even if founded on a compulsory ground. In *Araneta v. Dinglasan*, [17] the Motion to disqualify Justice Sabino Padilla from participating in the case was grounded on the fact that as justice secretary he had advised the President on the question of emergency powers. In denying the Motion, which was filed only after a Decision had been promulgated, the Court ruled that "a litigant . . . cannot be permitted to speculate upon the action of the court and raise an objection of this sort after a decision has been rendered." [18]

In *Limpin Jr. v. IAC*, [19] filed after the Decision had already become final and executory was a Motion for Inhibition of justices who had been associated with the law firm which had acted as counsel to a party. In that case, the Court reiterated that a motion for disqualification must be denied, if filed after a member of the Court had already given an opinion on the merits of the case.

Recusation/Recusal

Recusation or *recusal* is the process in which, "because of self interest, bias or prejudice," on the objection of either of the parties, disqualified from hearing a lawsuit; or one in which they disqualify themselves therefrom. [20] "In the civil law, [it is] a species of exception or plea to the jurisdiction, to the effect that the particular judge is disqualified from hearing the cause by reason of interest or prejudice." [21]

From the definition of *recusation* or *recusal*, it can be easily discerned that the term is hardly any different from disqualification, except that it refers more specifically to judges. Thus, Melinkoff makes this simple distinction: "Unlike the multiple targets of a *motion to disqualify*, a *motion to recuse* is usually restricted to judges; it is sometimes used against a lawyer in an official position, e.g., a district attorney charged with conflict of interest, but not against lawyers generally." [22]

CONCLUSION

In sum, while disqualification and recusal are sourced from legal grounds provided in the Rules of Court and the Code of Judicial Conduct, inhibition is based on the exercise of sound judicial discretion depending on the circumstances of each case. Because all these, however, are rules of procedure, the Court has the final say. As the constitutional authority in such matters, it may in fact compel disqualification or reject offers of inhibition, on such grounds and under such circumstances as it may deem appropriate.

Thus, in *Veterans Federation Party v. Comelec* [23] (the party-list cases), the Supreme Court rejected my offer to inhibit myself in a Resolution announced during the

Oral Argument on July 1, 1999. It did so for the following reasons: (1) I was merely a voluntary non-compensated officer of the nonprofit Philippine Chamber of Commerce and Industry (PCCI); (2) the case and its antecedents were not extant during my incumbency at PCCI; and (3) important constitutional questions were involved, and the Court believed that all justices should as much as possible participate and vote. [24]

The foregoing discussion shows the following:

(1) My non-participation in these consolidated cases did not arise from any legal ground showing partiality or bias in favor of or against petitioner.

(2) I voluntarily resorted to non-participation in order "to hold myself above petitioner's reproach, and to deprive "him or anyone else [of] any excuse to cast doubt on the integrity of these proceedings and of the decision that this Court may render in these cases of transcendental importance to the nation."

(3) My non-participation applies only to the instant consolidated cases, *pro hac vice*, and not necessarily to all other future cases involving any of the herein parties.

Footnotes

1. D. Melinkoff, Melinkoff's Dictionary Of American Legal Usage, p. 174, 1992 ed.

2. 229 SCRA 766, February 9, 1994.

3. 298 SCRA 306, 310, October 30, 1998, per Mendoza, *J*. (citations omitted).

4. *Perez v. Suller*, 249 SCRA 665, November 6, 1995; *Urbanes Jr. v CA*, 236 SCRA 72, August 30, 1994; *Go v. Court of Appeals*, 221 SCRA 397, April 7, 1993.

5. 168 SCRA 459, 470, December 14, 1988, per Fernan *CJ*. See also *Aparicio v. Andal*, 175 SCRA 569, July 25, 1989.

6. More aptly, "inhibition."

7. Citing *Gabol v. Riodique*, 65 SCRA 505.

8. 267 SCRA 599, February 6, 1997, *per curiam*.

9. *Ibid*. at 606.

10. *Ibid*., citing *Jurado & Co. v. Hongkong & Shanghai Banking Corp*., 1 Phil 395. See also *Hanrahan v. Hampton*, 446 US 1301, 64 L Ed 2d 214, 100 S Ct 1868; April 30, 1980.

11. *Pimentel v. Salanga*, 21 SCRA 160, 167-68, September 18, 1967, per Sanchez, *J*.; reiterated in *Mateo v. Villaluz*, 50 SCRA 18; *Dimacuha v. Concepcion*, 202 Phil 961, September 30, 1982.

12. *People v. CA*, 309 SCRA 705, July 2, 1999; *Soriano v. Angeles*, GR No. 109920, August 31, 2000; *Go v. CA*, 221 SCRA 397, April 7, 1993.

13. *Aleria Jr. v. Velez*, 298 SCRA 611, November 16, 1998, per Quisumbing, *J*.; *Soriano v. Angeles*, *ibid*.

14. *Supra* at p. 417.

15. *Ibid*., citing *People v. Serrano*, 203 SCRA 171, 186-87, October 28, 1991.

16. 175 SCRA 569, July 25, 1989, Sarmiento, *J*.; citing *Pimentel v. Salanga*, 21 SCRA 160, September 18, 1967.

17. 84 Phil 368, 431-432, August 26, 1949.

18. Citing *Government of Philippine Islands v. Heirs of Abella*, 49 Phil. 374.

19. 161 SCRA 83, 97, May 5, 1988.

20. Black's Law Dictionary 1277, 6TH ed. (1990).

21. *Ibid*.

22. D. Melinkoff, Melinkoff's Dictionary Of American Legal Usage 174 (1992).

23. GR Nos. 136781, 136786 and 136795, October 6, 2000.

24. TSN (GR Nos. 136781, 136786 and 136795), July 1, 1999, pp. 3-4.